



CITY OF ITHACA

108 E. Green St. — Third Floor Ithaca, NY 14850-5690

DEPARTMENT OF PLANNING AND DEVELOPMENT

Lisa Nicholas, AICP, Director

Telephone: Planning & Development – 607-274-6550

E-Mail: dgrunder@cityofithaca.org

Community Development/IURA – 607-274-6565

BOARD OF ZONING APPEALS (BZA) AGENDA

The regular monthly meeting of the BOARD OF ZONING APPEALS will be held at 5:30 p.m. on Tuesday, March 3, 2026. This meeting is open to the public and will be held in Common Council Chambers, Third Floor, City Hall, 108 E. Green Street, Ithaca, NY, and also conducted remotely using videoconferencing technology. Members of the public are strongly encouraged to participate remotely. Virtual participation in public meetings is authorized by Part WW of Chapter 56 of the Laws of 2022 of New York State and Local Law 2022-05. More information, including the written procedures governing the use of videoconferencing technology, is available at <http://www.cityofithaca.org/339/Boards-Committees>.

For remote viewing/attendance: A live stream of the proceedings is available at https://www.youtube.com/channel/UC7RtjN1P_RFaFW2IVCnTrDg; a recording will be made available through the same link following the conclusion of the proceedings. If you are a member of the public wanting to observe the meeting, please simply watch the live stream. If you are an interested party and would like to sign up to speak at the meeting or submit written comments, please see the instructions at the end of the agenda.

- I. CALL TO ORDER & AGENDA REVIEW 5:30 PM
- II. CONTINUED APPEALS
None
- III. NEW APPEALS
 - A. Appeal Number: ZONE-25-12 5:35 PM
Address: 132 Cherry Street
Zone: Cherry Street District
Applicant: Visum Development, Property Owner
Public Hearing: Yes
Description: Request for an area variance from §325-8, Column 5, Off-Street Loading and Column 11, Front Yard, requirements of the City of Ithaca Zoning Ordinance to allow the construction of two five-story, mixed-use buildings. The property was previously granted an area variance in 2022. The variance has now expired, and the project has been modified in response to the updated floodway construction requirements.
 - B. Appeal Number: ZONE-26-4, 26-5, 26-6, 26-7 6:00 PM
Address: 113-119 Sears Street
Zone: R-2b
Applicant: Chau Pham
Property Owner: Ithaca Neighborhood Housing Services (INHS)
Public Hearing: Yes

If you have a disability and would like specific accommodation in order to participate, please contact the City Clerk's Office at 274-6570 by 12:00 p.m., no later than 2 days (not including weekends and holidays) before the meeting.

Description: Request for an area variance from §325-8, Column 13, Other Side Yard, to allow for secondary side yards of less than 5' in the R-2b zone. The homes were planned to be located 5' from the side lot line but were constructed between 4.6'-4.9' from the property line.

IV. PRELIMINARY PRESENTATIONS

None

V. APPROVAL OF MINUTES

November 2025; January 2026

VI. ADMINISTRATIVE MATTERS

6:25 PM

A. Upcoming Meetings

VII. ADJOURNMENT

6:30 PM

ACCESSING ONLINE MEETING MATERIALS

Parties interested in reviewing application materials prior to the meeting may visit the City's website at <http://www.cityofithaca.org/368/Board-of-Zoning-Appeals> (select "Most Recent Agenda"), beginning one week before the scheduled BZA meeting. Please do not hesitate to contact our office if you have any questions or need any assistance accessing the materials.

COMMENTS & QUESTIONS

Interested parties are invited to speak or submit written comments on appeals that come before the Board of Zoning Appeals. The Board considers "interested parties" persons who live, work or own property within 750 feet of the property, who are authorized representatives of recognized adjacent neighborhood civic groups, or who are elected City officials. **Interested parties wishing to be heard must register by 3:00 PM on the day of the meeting.** To register, please send your name and address to zoning@cityofithaca.org, subject line: "BZA Speaker Registration – March 2026".

Interested parties may submit comments for public hearings by mail or email. **All comments must be received by 3 p.m. on the day of the meeting,** and they will be included in the record. Each comment is limited to three minutes. Indicate in your email that the comment is for a public hearing and please include your name and address. All comments and questions can be emailed to Megan Wilson at zoning@cityofithaca.org or call (607) 274-6550.



CITY OF ITHACA

Board of Zoning Appeals — Notice of Appeal

APPEAL #ZONE-25-12

132 CHERRY STREET

Appeal of Visum Development for an area variance from §325-8, Column 5, Off-Street Loading, and Column 11, Front Yard, requirements of the Zoning Ordinance. The applicant proposes to construct two five-story, mixed-use buildings that will contain two commercial spaces, 148 residential units, 40 parking spaces, and other tenant amenities at 132 Cherry Street, located in the Cherry Street District. The applicant is proposing to site the buildings 8' 6" from the inside edge of the sidewalk on the ground floor and 3' 6" from the inside edge of the sidewalk on the upper floors, creating a front yard deficiency. The Zoning Ordinance requires all buildings in the Cherry Street District to be located a minimum of 15' from the inside edge of the sidewalk. The project, as proposed, would provide a front yard of 3.5' or 23% of the required yard.

The applicant also proposes to provide no loading spaces, while the Cherry Street District requires one loading space. In the previous design, the loading zone was provided in the City right-of-way. However, changes to the project design remove all on-street parking and loading.

The property was previously granted an area variance in 2022 for a front yard deficiency (BZA #3228). When the variance in 2022 was granted, the buildings were located 8' from the inside edge of the sidewalk, out of the required 15'. The variance has now expired, and the project has been modified due to changes to the regulatory floodway, which encroaches up to 25' on the rear of the property and prohibits all construction in that area.

City of Ithaca Board of Zoning Appeals Worksheet

Appeal Number ZONE-25-12
Use District CSD
Applicant Visum Development
Application Type: Area Variance

Address 132 Cherry Street
Date 3/3/2026
Owner Visum Development

Column Number	2	3	4	5	6	7	8	9	10	11	12	13	14/15	16
Column Title	Use	Accessory Use	Off-Street Parking	Off-Street Loading	Lot Area (Sq. Feet)	Lot Width (Feet)	Number of Stories	Height in Feet	% of Lot Coverage	Front Yard	2nd Front Yard	Other Side Yard	Rear yard: % of depth or number of feet, whichever is less	Minimum Building Height
Existing Condition and Use					59,786	293'								
District Regulations for Existing	Residential, retail, industrial, mixed-use		None	1, unless provided for in ROW	None	None	5	63	70% building; 15% greenspace	15' from inside edge of sidewalk	10', except row houses	10', except row houses	10' from property line & 25' from top of bank	Industrial Use: None; Others: 2
Note Non-Conforming Conditions					OK	OK								
Proposed Condition and/or Use	Mixed-use (retail, residential)		+/-40	0	59,786	293'	5	63'	59% building; 26% greenspace	3' 6" from inside edge of sidewalk	32'	10'	10' from PL & 35' from top of bank	5
District Regulation for Proposed	Residential, retail, industrial, mixed-use		None	1, unless provided for in ROW	None	None	5	63	70% building; 15% greenspace	15' from inside edge of sidewalk	15' from inside edge of sidewalk	10', except row houses	10' from property line & 25' from top of bank	Industrial Use: None; Others: 2
Note Non-Conforming Conditions for Proposal	OK		OK	Def.	OK	OK	OK	OK	OK	Def.	OK	OK	OK	OK



Record No:
ZONE-25-12

Zoning Review
Application

Status: Active

Submitted On: 11/21/2025

Primary Location

132 CHERRY ST
Ithaca, NY 14850

Owner

Applicant

 Julia Bucher



Ithaca, NY 14850

Zoning Review Application

Building Permit #

42568

Building Type*

Multiple Dwelling

Are there any existing zoning variances for this
property?*

Yes

List variances*

Front Yard Area Variance (expired)

Has a previous Zoning Review Application been
made for this proposal?*

Yes

Additional Application Notes

Applicant Certification



I certify the information submitted with the Zoning Review Application is true to the best of my knowledge/belief. I also acknowledge that planning staff and the Board of Zoning Appeals may visit the property and I specifically permit such visits.

Applicant Signature*



Julia Bucher

Nov 20, 2025



February 23, 2026

**Re: The Hive/132 Cherry St Zoning Variance Request Narrative
Appeal # ZONE-25-12**

To Whom it May Concern,

The Hive at 132 Cherry Street is a previously approved five-story, mixed-use development located in the Cherry Street District (CSD). The project received site plan approval in 2022 and was originally designed as market-rate housing. In response to Ithaca's housing needs, Visum Development has since transitioned the project to affordable housing and intends to pursue HCR funding. They have made a concerted effort to maintain the market-rate quality of the project while providing more affordable housing options for the city of Ithaca. Minimal changes have been implemented during this redesign only to address FEMA regulations and HCR requirements.

The project's existing site plan approval remains valid through an approved extension; however, the development team is now seeking an amended site plan approval due to FEMA floodplain map revisions that require modifications to the approved design. The project will also require setback variances from the BZA and amended SEQR recommendations.

The 1.37-acre waterfront property provides a much-desired affordable living option on waterfront property with great amenities along with access to the adjacent black diamond trail. Residents will also have access to a private playground located in the courtyard overlooking the water. A "towpath" which would run along the waterfront behind the building, creates a public waterfront promenade that connects to the black diamond trail and could be extended by Arthaus and other future developments along Cherry St.

The massing of the two buildings is broken up to create more interest along the façade. Where the massing projects out 5' the roof also projects up to 63', although, it is predominantly at 58' in building height. The two buildings totaling 160,800sf will include 148 residential units total, including 12 studios, 88 one-bedrooms, and 48 two-bedrooms. The proposed lot coverage is approx. 74% and 26% of the site is green space that is either grass or landscaped.

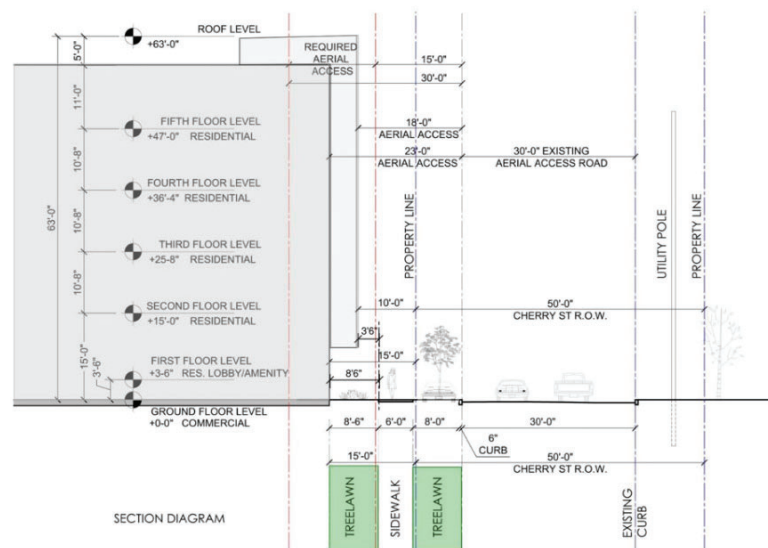
The building's amenities include a community room and kitchen, co-working spaces, management offices, indoor bicycle storage, dog wash, and secure package rooms. The ground floor of the buildings will include +/- 40 covered parking spaces. There are two ground-floor commercial spaces on Cherry St; the northern space will comprise approx. 1,550 square feet and the southern space approx. 1,450 square feet. There is also an approx. 1,350 sf Gym space on the SW corner adjacent to the Waterfront Trail and pedestrian bridge. The gym space will be accessible to the residents included in their rent and to the public via membership. The total square footage of the building is approx. 165,500 sf, and the total building footprint is 32,400 sf. A pergola in the courtyard overlooking an outdoor amenity space and waterfront adds an additional 2000 sf +/-.

The project is seeking an Area Variance for the Section 325-8 Required Minimum Front Yard in the Cherry Street District (CSD) - 15' minimum required front yard setback measured from the inside edge of the sidewalk. (Amended 2020). Previously this project requested and obtained an area variance for the Front Yard requirement. As a result of the newly adopted FEMA maps the entire

site now falls inside the 1% flood area. The Regulatory Floodway, which is a no-build area, encroaches 25' on the rear of the property.

To maintain the viability, number of units and overall design of the project, we need to seek a variance as this was not a self-created difficulty. We propose moving both buildings forward, to align with to Arthaus, 15' from the property line.

1. Approximately 50% of the floors above project 5' beyond the ground floor façade. This overhang will be approximately 11' 0" above grade.
2. We are proposing to place the outside edge of the sidewalk 6" inside the property line with an 8'6" tree lawn between the building and the sidewalk. Some portions of the upper floors would project 5'0" over the tree lawn as described above.
3. We are proposing to place an 8' tree lawn integrated with parallel parking spaces in the R.O.W. between the sidewalk and road curb.



To not create an undesirable change in the neighborhood character, we have worked with city planning officials to meet the desire for a tree lawn while also providing a loading zone for deliveries. The tree lawn is integrated with 3 pockets of 2 parallel parking spaces each. This provides additional parking spaces for visitors and a loading zone. The loading area can be regulated by limiting parking in those spaces to 15 minutes. The tree lawn with integrated parking between both the street and sidewalk and a tree lawn between the sidewalk and building fulfills the goals and balances those desires, while also relocating the buildings out of the Regulatory Floodway on the newly adopted FEMA maps and providing a more desirable vantage point for the pedestrian as they walk along a tree-lined Cherry St.

In summary, splitting the massing into two buildings instead of one provides the density required to building a feasible project while maintaining openness without the building appearing large and oppressive along the street. The façade breaks up the massing with architectural pushes and pulls at the upper levels and highlight points of entries at the ground level. The ground floor wraps the programming in a way that best activates the two main frontages of the property. The FEMA setback created a unique opportunity to interact with the black diamond trail by extending a towpath along the property line that would be a public amenity as well. The developer and management are in favor of providing amenities such as a gym along the trail that would be accessible to both the residents and the greater community.

CITY OF ITHACA

108 East Green Street — 3rd Floor Ithaca, New York 14850-5690

DEPARTMENT OF PLANNING, BUILDING, ZONING & ECONOMIC DEVELOPMENT

Gino Leonardi, Secretary to the Board of Zoning Appeals

Telephone: 607-274-6550

Fax: 607-274-6558

Email: gleonardi@cityofithaca.org



**— NOTICE OF APPEAL —
REGARDING ZONING OR SIGN ORDINANCE
CITY OF ITHACA, NEW YORK**

APPEAL NO. 42568

TO: Owners of Property within 200 feet of 132 Cherry Street and others interested.
(property address)

FROM: AHP Development LLC applicable to property named above, in a(n) CSD zone.
(name of person or organization making appeal)

REGARDING: (check appropriate box)

- ☒ Area Variance
- ☐ Special Permit
- ☐ Use Variance
- ☐ Sign Variance
- ☐ Action, Decision, or Interpretation of Zoning Officer

City regulations require you be notified of this appeal to the Board of Zoning Appeals (BZA), as described in the attached letter and provide the opportunity for you to comment on it and/or attend the meetings listed below. Anyone considered an interested party may speak for or against the appeal at the meeting listed below, or submit a written statement to the BZA before its designated meeting. There is a time limit of three (3) minutes for each interested party to address the BZA during the Public Hearing portion of the meeting. Written comments may be submitted by email to zoning@cityofithaca.org or sent to the Planning Division, 108 E. Green Street, Ithaca, NY 14850.

The Board of Zoning Appeals bases its decision primarily on the written evidence submitted and presented to it, the testimony of interested parties, and zoning and legal considerations. The written case record will be available for review in the Planning Division, City Hall – 3rd Floor, 108 E. Green St., beginning one week before the scheduled BZA meeting. The information will also be available on the City's website at <https://www.cityofithacany.gov/368/Board-of-Zoning-Appeals>

The **BOARD OF ZONING APPEALS** will consider this case on 03/03 at 6:00 P.M. in Common Council Chambers, City Hall, 108 E. Green St. Ithaca.

Julia Bucher

Signature of Appellant

132 Cherry Street, Ithaca, NY 14850

Address

02/10/2026

Date

500700 77.-4-2	AHP Development LLC	37 W End Ave PH4	Brooklyn NY 11235
500700 77.-4-3	Ithaca Arthaus, LLC	305 W Commercial St	Springfield MO 65803
500700 77.-6-1.1	City of Ithaca	108 E Green St	Ithaca NY 14850
500700 77.-6-2	City of Ithaca	125 E Green St	Ithaca NY 14850
500700 77.-6-3	John L H Fuchs	220 Cherry St	Ithaca NY 14850
500700 78.-1-1.1	110 Cherry Street LLC	1240 Coddington Rd	Brooktondale NY 14817
500700 78.-1-1.2	Downstate 201 Excavation LLC	1240 Coddington Rd	Brooktondale NY 14817
500700 78.-3-1	Gates Road Holding, LLC	3913 Gates Rd	Vestal NY 13850

Across the inlet

500700 77.-2-5	Simeon M Warner	274 Floral Ave	Ithaca NY 14850
500700 77.-2-4	Billie Wilson	264 Floral Ave	Ithaca NY 14850
500700 74.-3-14	Jarrell Puryear	4291 Krums Corners Rd	Trumansburg NY 14886
500700 74.-3-13	Lizabeth Morse	3160 Albrectsen Rd	Ithaca NY 14850
500700 74.-3-12	Lily Andrews	867 Riverside Dr Apt 1	New York NY 10032
500700 74.-3-11	Chun Hua Liu	246 Floral Ave	Ithaca NY 14850

CITY OF ITHACA

108 East Green Street — 3rd Floor Ithaca, New York 14850-5690

DEPARTMENT OF PLANNING, BUILDING, ZONING & ECONOMIC DEVELOPMENT

Gino Leonardi, Secretary to the Board of Zoning Appeals

Tel: 607-274-6550

Fax: 607-274-6558

Email: gleonardi@cityofithaca.org



ZONING APPEAL CERTIFICATION OF MAILING

RE: City of Ithaca Board of Zoning Appeals

Zoning Appeal # 42568

I, Julia Bucher, affirm all property owners within two hundred (200) feet of the boundaries of the lot(s) under consideration have been mailed a copy of the enclosed notice on or before 02/17/2026. I affirm the notice was mailed to the property owners at the addresses shown on the attached list of owners, by depositing the copy in a post-paid properly addressed envelope, in a post office or an official depository under the exclusive care and custody of the United States Post Office. I further affirm the names and addresses of the property owners are the same as the most recent assessment roll.

Julia Bucher

(Appellant's Signature)

PLEASE SUBMIT THIS FORM TO:

City of Ithaca Zoning Division
108 E. Green St., 3rd Fl.
Ithaca, NY 14850

Phone: (607) 274-6550
Fax: (607) 274-6558

A key plan map showing the intersection of Cayuga Inlet and Cherry Street. A large, stylized letter 'S' is drawn on the map, indicating the location of the site. The text 'CAYUGA INLET' is written vertically along the left side, and 'CHERRY STREET' is written vertically along the right side. Below the map, the text 'KEY PLAN' is written.

VISUM DEVELOPMENT

THE HIVE

132 CHERRY STREET
ITHACA, NY

REV. #	DESCRIPTION	DATE
--------	-------------	------

JOB NO.	222
SCALE	1/16" = 1'-0"
ISSUE DATE	01/21/2022
DRAWN BY	KI
CHECKED BY	S

THIS IS A SINGLE SHEET OF A COHESIVE
SET OF CONSTRUCTION DOCUMENTS
(INCLUDING DRAWINGS AND SPECIFICATIONS).
INTERPRETATION OF THE INFORMATION
AS PRESENTED SHOULD BE BASED ON
THE ENTIRE SET OF DOCUMENTS.

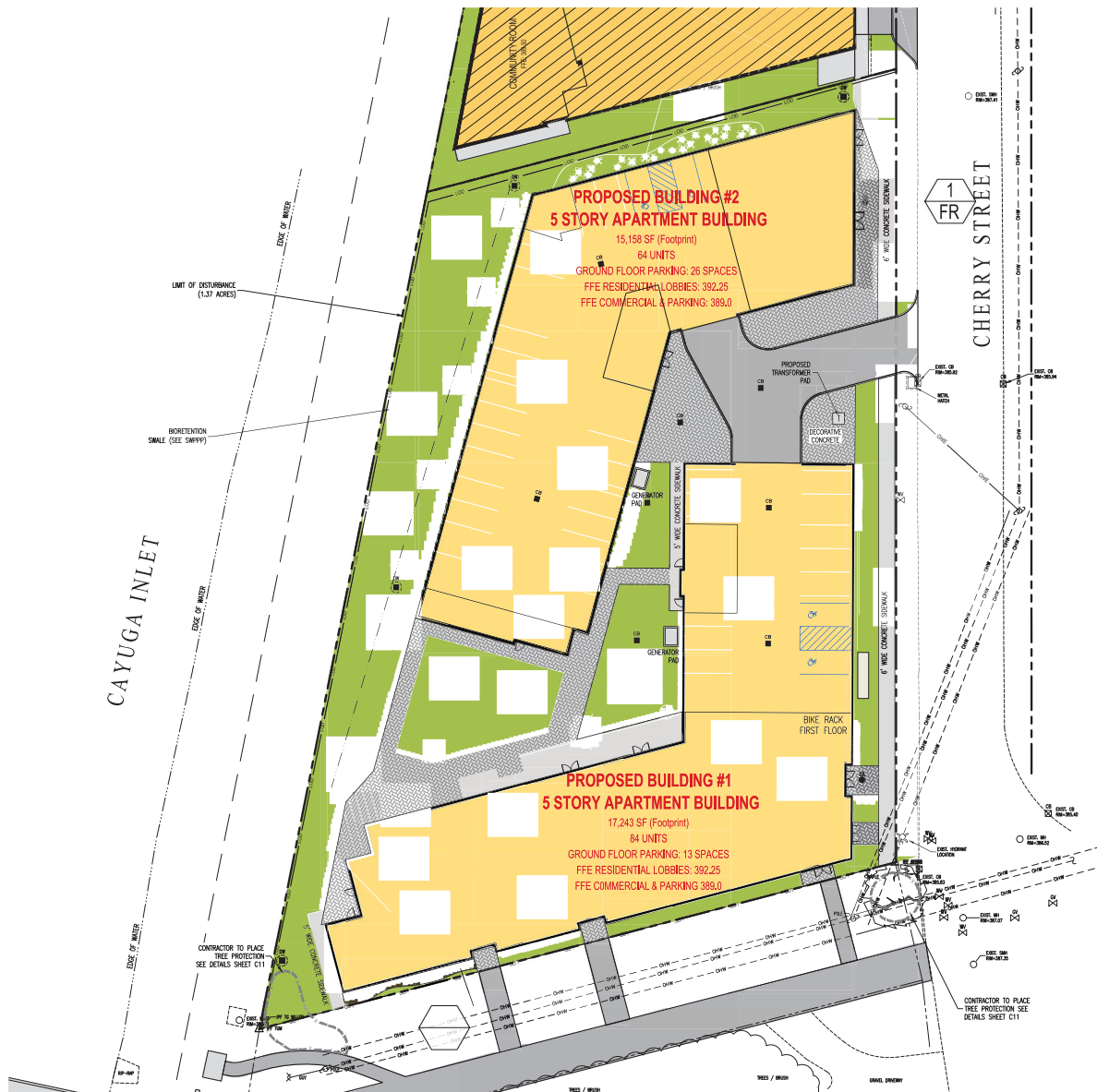
DRAWING TITLE

GROUND FLOOR
KEY PLAN

A-110 (1)

DESIGN DEVELOPMENT







CITY OF ITHACA

108 E. Green Street — 3rd Floor Ithaca, NY 14850-5690

DEPARTMENT OF PLANNING, BUILDING, ZONING, & ECONOMIC DEVELOPMENT

Megan Wilson, Secretary to the Board of Zoning Appeals

Telephone: 607-274-6550

Fax: 607-274-6558

E-Mail: mwilson@cityofithaca.org

CITY OF ITHACA BOARD of ZONING APPEALS
Area Variance Findings & Decision

Appeal No.: 3228

Applicant: 132 Cherry Clinton LLC

Property Location: 132 Cherry Street

Zoning District: Cherry Street District (CSD)

Applicable Section of City Zoning Code: §325-8, Column 11.

Requirement for Which Variance is Requested: Front Yard.

Publication Dates: August 4, 2022; August 9, 2022; September 23, 2022; and September 26, 2022.

Meeting Held On: August 9, 2022 and September 26, 2022.

Summary: Appeal of property owner 132 Cherry Clinton LLC for an area variance from §325-8, Column 11, Front Yard, requirements of the Zoning Ordinance. The applicant proposes to demolish the existing building on the site and construct two 5-story, mixed-use buildings that will contain two commercial spaces, 143 residential units, 48 parking spaces, and other tenant amenities. The applicant is proposing to site the buildings 8' from the inside edge of the new sidewalk. The Zoning Ordinance requires all buildings in the Cherry Street District to be located a minimum of 15' from the inside edge of the sidewalk. The applicant is requesting a variance from the front yard requirement in order to locate the building within the setback range from the street that is mandated by New York State Fire Code.

The applicants presented the project at the August 2022 BZA meeting, and the Board opened the public hearing. The Board will continue the public hearing and resume consideration of this appeal at its September 26th meeting.

Public Hearing Held On: August 9, 2022 and September 26, 2022.

Members present:

Michael Cannon

Andre Gardiner

Joseph Kirby

David Barken, Chair

There were no comments from interested parties in support of or in opposition to the appeal.

Tompkins County Review per Section 239 -l & -m of New York State General Municipal Law:

The Tompkins County Department of Planning & Sustainability had no comments or recommendations on the appeal.

Environmental Review: This variance is a component of an action that also includes site plan review. Considered together, this is a Type I action under the City of Ithaca Environmental Quality Review Ordinance and the State Environmental Quality Review Act for which the Planning and Development Board, acting as Lead Agency, made a Negative Determination of Environmental Significance on August 23, 2022.

Planning & Development Board Recommendation:

The Planning Board fully supports this variance as this project is in a location where the city is encouraging development and the applicant is willingly working with the City to create a favorable streetscape along Cherry Street. As such the proposed sidewalk is located on the project site further narrowing the property. Without this variance given the property dimensions it would prove difficult to develop.

Ithaca Landmarks Preservation Commission Recommendation:

Not applicable

Motion: A motion to grant variance #3228 for 132 Cherry Street was made by J. Kirby.

Deliberations & Findings:

The Board noted that the front yard variance, and other recent project changes, are necessary to comply with New York State Fire Code requirements for emergency access. The Board finds that the requested variance is the minimum needed to comply with the State code requirements and does not negatively impact the neighborhood.

Factors Considered:

1. Whether an undesirable change would be produced in the character of the neighborhood or a detriment to nearby properties: Yes ☐ No ☒

- The front yard in the Cherry Street District is measured from the inside edge of the sidewalk to the building façade. This is intended to provide green space between the building front and the sidewalk, which is often in the public right-of-way. The sidewalk at 132 Cherry Street will be located on private property, and the applicant is working with the City to create a pedestrian-friendly streetscape. While the applicant is proposing a reduced front yard, the goal of creating green space and a well-designed streetscape will still be achieved.
- The Board has not received any comments from interested parties on this variance request.

2. Whether the benefit sought by the applicant can be achieved by a feasible alternative to the variance: Yes ☐ No ☒

- If the applicant sites the building to meet the front yard requirement, it is beyond the allowed range for aerial access for emergency response. It is not feasible to meet both the requirements of the Zoning Ordinance and New York State Fire Code.

3. Whether the requested variance is substantial: ☒ Yes ☐ No

- The applicant is proposing a front yard of 8' from the inside edge of the sidewalk. This results in a front yard deficiency of 47'; however, the Board finds that there is no feasible alternative that would meet all applicable codes and achieve the goal for an active, pedestrian-friendly streetscape along Cherry Street.

4. Would the variance have an adverse impact on the physical or environmental conditions in the neighborhood: Yes ☐ No ☒

- The Planning and Development Board, acting as lead agency, has determined that the project will not have a significant impact on the environment.

- Based on the submitted materials and testimony of the applicant, there is no evidence of adverse physical or environmental impacts resulting from the lot coverage deficiency.

5. Whether the alleged difficulty was self-created: Yes ☒ No ☐

- The alleged difficulty is self-created in that the applicant is choosing to redevelop the property at 132 Cherry Street. However, site conditions unique to this property and the City's objectives for the street design make it infeasible to meet both the requirements of the Zoning Ordinance and New York State Fire Code.

Second Motion to Grant Variance: Made by D. Barken.

Vote: 4-0-0

Michael Cannon	YES
Andre Gardiner	YES
Joseph Kirby	YES
David Barken, Chair	YES

Determination of the BZA Based on the Above Factors:

The BZA, taking into the five factors for an area variance, finds that the benefit to the applicants outweighs the detriment to the neighborhood or community. The BZA further finds that the variances from the Zoning Ordinance, §325-8, Column 11, is the minimum variance that should be granted in order to preserve and protect the character of the neighborhood and the health, safety, and welfare of the community.



Megan Wilson, Zoning Administrator
Secretary, Board of Zoning Appeals

September 26, 2022
Date



LEGEND

- PROPERTY LINE
- EXISTING EASEMENT
- EXISTING EDGE OF ROADWAY
- EXISTING CURB LINE
- EXISTING SANITARY SEWER
- EXISTING GAS MAIN
- EXISTING UTILITY LINE
- EXISTING FENCE LINE
- EXISTING WATER LINE
- EXISTING CONTOUR LINE
- PROPOSED LIMIT OF DISTURBANCE
- PROPOSED CONTOUR LINE
- PROPOSED EASEMENT
- PROPOSED STORM SEWER
- PROPOSED EDGE OF ROADWAY
- PROPOSED CURB LINE
- PROPOSED SANITARY SEWER
- PROPOSED GAS LINE
- PROPOSED UTILITY LINE
- PROPOSED WATER LINE
- PROPOSED SUE FENCE
- PROPOSED COMPOST SOCK
- EXISTING SANITARY MANHOLE
- EXISTING FIRE HYDRANT ASSEMBLY
- EXISTING CLEARDOT
- EXISTING SPOT ELEVATION
- PROPOSED SANITARY MANHOLE
- PROPOSED WATER VALVE
- PROPOSED THURST BLOCK
- PROPOSED FIRE HYDRANT ASSEMBLY
- PROPOSED CLEARDOT
- PROPOSED LIGHTING FEATURE
- PROPOSED SPOT ELEVATION
- PROPOSED DRYWELL
- PROPOSED CATCH BASIN
- PROPOSED INLET PROTECTION
- PROPOSED TOP/BOTTOM CURB

ZONING INFORMATION
CHERRY STREET DISTRICT (CSD)
TAX MAP # 77-4-2

	REQUIRED	PROPOSED
PARCEL SIZE	NO MIN.	1.37 Acres
MIN. LOT WIDTH	NO MIN.	292.9'

BUILDING SETBACK

	REQUIRED	PROPOSED
FRONT YARD	10'	20'
REAR YARD	25' *	10' to PL
SIDE YARD	10'	36.5' to Top of Bank

MAX. LOT COVERAGE: 100%
MAX. BUILDING HEIGHT: 63'
PARKING SPACES: NONE REQ. 63 SPACES TOTAL 55 w/in STRUCTURE 9 on STREET

* REAR YARD SETBACK = 25' FROM TOP OF BANK ALONG CAYUGA INLET

Scale: 1" = 20'
11x17 Prints are 1/2 Size

Date: April 28, 2020

Design By: JBG

Drawn By: RSN

Checked By: JBG

Project No.: 2020.017 & 018

Drawing Name: 20018.dwg

IT'S THE LAW
Call three days before you dig!
1-800-486-7862
Dig Safely New York
(non-members must be contacted separately)

PRELIMINARY PRINT
NOT FOR CONSTRUCTION
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3	06-10-22	Revised Site Plan Submission	
2	05-17-22	Revised Site Plan Submission	
1	03-14-22	Revised Site Plan Submission	
		Revision Description	

I, a Fagan Engineer, have prepared this plan in accordance with the Education Law, Article 143 Section 7209, for Any Person, unless he is Acting Under the Direction of a Licensed Professional Engineer or Land Surveyor to Alter an Item in Any Way, if an Item Bearing the Seal of an Engineer or Land Surveyor is Altered, the Altering Engineer or Land Surveyor shall Affix to the Item His Seal and the Notation "Altered By" followed by His Signature and the Date. Of Such Alteration, And A Specific Description Of the Alteration.

THE HIVE
132 CHERRY STREET
CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK

FAGAN
ENGINEERS
& LAND SURVEYORS P.C.
113 East Chenango Place
Ithaca, N.Y. 14854
Phone (607) 734-2145
Fax (607) 734-2149
www.FaganEngineers.com

Scale: 1" = 20'
11x17 Prints are 1/2 Size

Date: April 28, 2020

Design By: JBG

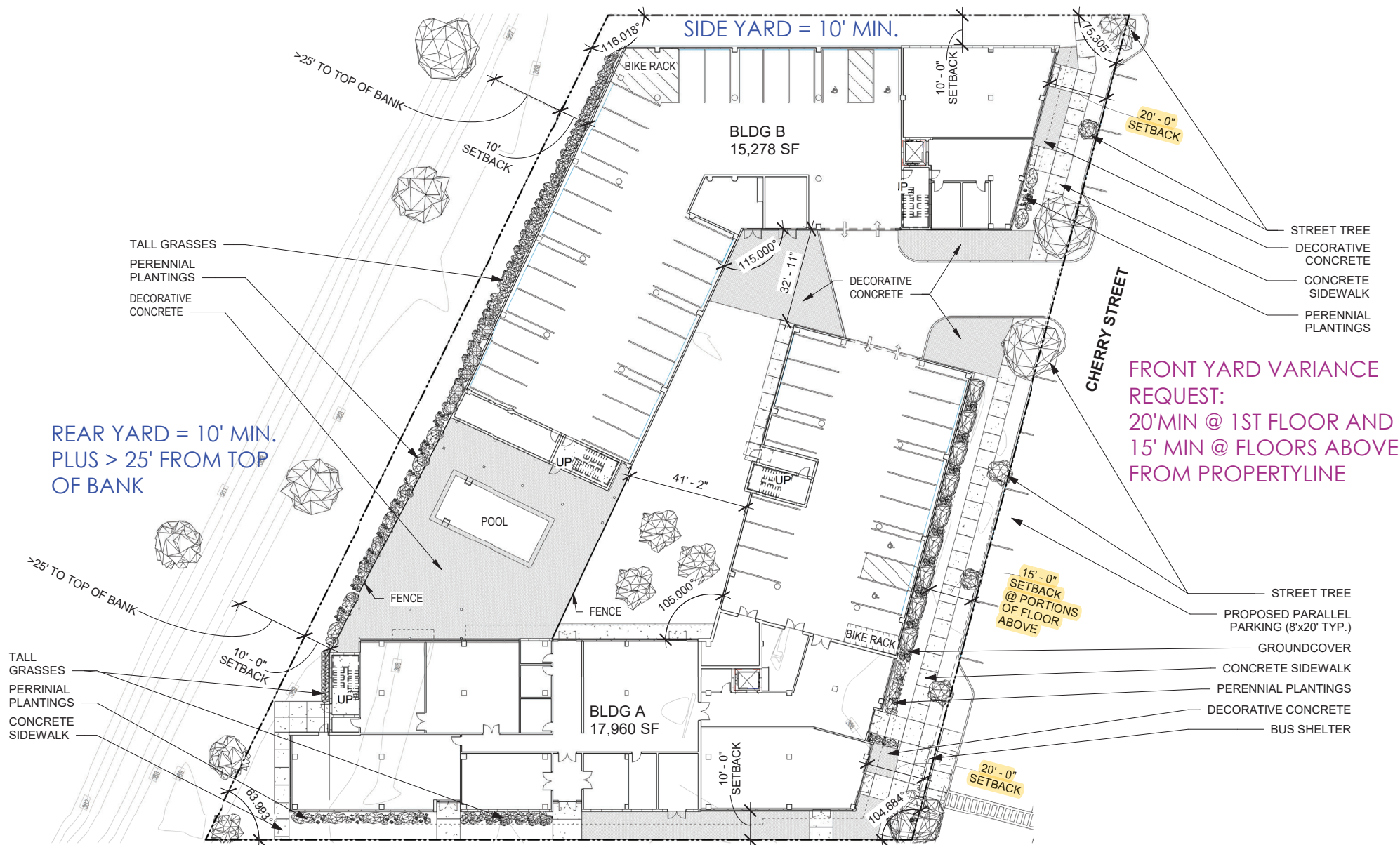
Drawn By: RSN

Checked By: JBG

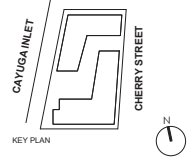
Project No.: 2020.017 & 018

Drawing Name: 20018.dwg

SITE PLAN
C3



PROGRESS SET
NOT FOR CONSTRUCTION



VISUM DEVELOPMENT

132 CHERRY STREET

132 CHERRY STREET
ITHACA, NY

REV. #	DESCRIPTION	DATE
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JOB NO.	2224
SCALE	1/16" = 1'-0"
ISSUE DATE	5/20/2022
DRAWN BY	MG
CHECKED BY	SJS

THIS IS A SINGLE SHEET OF A COMPLETE SET OF CONSTRUCTION DOCUMENTS (INCLUDING DRAWINGS AND SPECIFICATIONS). NO PART OF THIS SET OF DOCUMENTS SHALL BE REPRODUCED OR TRANSMITTED IN ANY FORM OR BY ANY MEANS, ELECTRONIC OR MECHANICAL, WITHOUT PERMISSION IN WRITING FROM CJS ARCHITECTS.

DRAWING TITLE

GROUND FLOOR
KEY PLAN

A-110

SCHEMATIC DESIGN



1 GROUND FLOOR
1/16" = 1'-0"



CITY OF ITHACA

Board of Zoning Appeals — Notice of Appeal

APPEAL # ZONE-26-4: 113 SEARS STREET
ZONE-26-5: 115 SEARS STREET
ZONE-26-6: 117 SEARS STREET
ZONE-26-7: 119 SEARS STREET

Appeal of Chau Pham on behalf of Ithaca Neighborhood Housing Services (INHS) for the following area variances to allow the occupancy of four newly-constructed single-family homes at the parcels addressed 113, 115, 117, and 119 Sears Street:

- 113 Sears Street: §325-8 Column 13, Other Side Yard
- 115 Sears Street: §325-8 Column 13, Other Side Yard
- 117 Sears Street: §325-8 Column 6, Lot Area and Column 13, Other Side Yard
- 119 Sears Street: §325-8 Column 6, Lot Area and Column 13, Other Side Yard

The properties were originally one larger lot that was subdivided as part of this project. The Board of Zoning Appeals previously granted area variances in 2024 for lot area, front yard, rear yard (BZA #3264) to allow the construction of the homes.

The applicant recently finished the construction, and upon survey of the as-built condition of the new subdivided lots, it was found that the new homes did not meet the secondary side yard requirements of 5'. Additionally, the final lot sizes varied from the original proposed sizes, and the properties at 117 Sears Street and 119 Sears Street are smaller than the lot sizes considered in the 2024 variance review.

City of Ithaca

Board of Zoning Appeals Worksheet

Appeal Number ZONE-26-4
Use District R-2b
Applicant Chau Pham
Application Type: Area Variance

Address 113 Sears Street
Date 03/03/26
Owner Ithaca Neighborhood Housing Services (INHS)

Column Number	2	3	4	5	6	7	8	9	10	11	12	13	14/15	16
Column Title	Use	Accessory Use	Off-Street Parking	Off-Street Loading	Lot Area (Sq. Feet)	Lot Width (Feet)	Number of Stories	Height in Feet	% of Lot Coverage	Front Yard	Side Yard	Other Side Yard	Rear yard: % of depth or number of feet, whichever is less	Minimum Building Height
Proposed Condition and Use	Singe-Family		1		2,669	39.25'	2	26'5"	35.0%	4	14'4"	5	8'10" or 13%	
District Regulations for Existing	Two Family Zone		1	None Required	3,000	35	3	35	35%	10	10	5	25% or 50' but not less than 20'	None
Note Non-Conforming Conditions	OK		OK		Def.*	OK	OK	OK	OK	Def.*	OK	OK	Def.*	
As Built Condition and/or Use	Singe-Family		1		2671.3	39.25'	2	26'5"	33.8%	4	14' 5"	4' 10"	8'10" or 13%	
District Regulation for Proposed	Two Family Zone		1	None Required	3,000	35	3	35	35%	10	10	5	25% or 50' but not less than 20'	None
Note Non-Conforming Conditions for Proposal	OK		OK		Def.*	OK	OK	OK	OK	Def.*	OK	Def.	Def.*	

Notes: Existing deficiencies are noted in blue; new or exacerbated deficiencies are noted in red.
 * Area deficiencies approved by the BZA through area variance BZA #3264 on February 6, 2024.

City of Ithaca

Board of Zoning Appeals Worksheet

Appeal Number ZONE-26-5
Use District R-2b
Applicant Chau Pham
Application Type: Area Variance
Address 115 Sears Street
Date 03/03/26
Owner Ithaca Neighborhood Housing Services (INHS)

Column Number	2	3	4	5	6	7	8	9	10	11	12	13	14/15	16
Column Title	Use	Accessory Use	Off-Street Parking	Off-Street Loading	Lot Area (Sq. Feet)	Lot Width (Feet)	Number of Stories	Height in Feet	% of Lot Coverage	Front Yard	Side Yard	Other Side Yard	Rear yard: % of depth or number of feet, whichever is less	Minimum Building Height
Proposed Condition and Use	Singe-Family		1		2,533	37.25'	2	26' 5"	34.2%	4	12' 4"	5	12'10" or 18.8%	
District Regulations for Existing	Two Family Zone		1	None Required	3,000	35	3	35	35%	10	10	5	25% or 50' but not less than 20'	None
Note Non-Conforming Conditions	OK		OK		Def.*	OK	OK	OK	OK	Def.*	OK	OK	Def.*	
As Built Condition and/or Use	Singe-Family		1		2,534.60	37.25'	2	26' 5"	33.1%	4	12' 4"	4' 10"	12'10" or 18.8%	
District Regulation for Proposed	Two Family Zone		1	None Required	3,000	35	3	35	35%	10	10	5	25% or 50' but not less than 20'	None
Note Non-Conforming Conditions for Proposal	OK		OK		Def.*	OK	OK	OK	OK	Def.*	OK	Def.	Def.*	

Notes: Existing deficiencies are noted in blue; new or exacerbated deficiencies are noted in red.
 * Area deficiencies approved by the BZA through area variance BZA #3264 on February 6, 2024.

City of Ithaca

Board of Zoning Appeals Worksheet

Appeal Number ZONE-26-6
Use District R-2b
Applicant Chau Pham
Application Type: Area Variance
Address 117 Sears Street
Date 03/03/26
Owner Ithaca Neighborhood Housing Services (INHS)

Column Number	2	3	4	5	6	7	8	9	10	11	12	13	14/15	16
Column Title	Use	Accessory Use	Off-Street Parking	Off-Street Loading	Lot Area (Sq. Feet)	Lot Width (Feet)	Number of Stories	Height in Feet	% of Lot Coverage	Front Yard	Side Yard	Other Side Yard	Rear yard: % of depth or number of feet, whichever is less	Minimum Building Height
Proposed Condition and Use	Singe-Family		1		2,550	37.5'	2	26'5"	34.5%	4	12' 7"	5	12'10" or 18.8%	
District Regulations for Existing	Two Family Zone		1	None Required	3,000	35	3	35	35%	10	10	5	25% or 50' but not less than 20'	None
Note Non-Conforming Conditions	OK		OK		Def.*	OK	OK	OK	OK	Def.*	OK	OK	Def.*	
As Built Condition and/or Use	Singe-Family		1		2,548	37.5'	2	26'5"	32.9%	4	12' 7"	4' 11"	12'10" or 18.8%	
District Regulation for Proposed	Two Family Zone		1	None Required	3,000	35	3	35	35%	10	10	5	25% or 50' but not less than 20'	None
Note Non-Conforming Conditions for Proposal	OK		OK		Def.	OK	OK	OK	OK	Def.*	OK	Def.	Def.*	

Notes: Existing deficiencies are noted in blue; new or exacerbated deficiencies are noted in red.
 * Area deficiencies approved by the BZA through area variance BZA #3264 on February 6, 2024.

City of Ithaca

Board of Zoning Appeals Worksheet

Appeal Number ZONE-26-7
Use District R-2b
Applicant Chau Pham
Application Type: Area Variance
Address 119 Sears Street
Date 03/03/26
Owner Ithaca Neighborhood Housing Services (INHS)

Column Number	2	3	4	5	6	7	8	9	10	11	12	13	14/15	16
Column Title	Use	Accessory Use	Off-Street Parking	Off-Street Loading	Lot Area (Sq. Feet)	Lot Width (Feet)	Number of Stories	Height in Feet	% of Lot Coverage	Front Yard	Side Yard	Other Side Yard	Rear yard: % of depth or number of feet, whichever is less	Minimum Building Height
Proposed Condition and Use	Singe-Family		1		2,669	39.25'	2	26'5"	35.0%	4	14'4"	5'	8'10" or 13%	
District Regulations for Existing	Two Family Zone		1	None Required	3,000	35	3	35	35%	10	10	5	25% or 50' but not less than 20'	None
Note Non-Conforming Conditions	OK		OK		Def.*	OK	OK	OK	OK	Def.*	OK	OK	Def.*	
As Built Condition and/or Use	Singe-Family		1		2667.3	39.25'	2	26'5"	33.8%	4	14' 8"	4' 6"	8'10" or 13%	
District Regulation for Proposed	Two Family Zone		1	None Required	3,000	35	3	35	35%	10	10	5	25% or 50' but not less than 20'	None
Note Non-Conforming Conditions for Proposal	OK		OK		Def.	OK	OK	OK	OK	Def.*	OK	Def.	Def.*	

Notes: Existing deficiencies are noted in blue; new or exacerbated deficiencies are noted in red.

* Area deficiencies approved by the BZA through area variance BZA #3264 on February 6, 2024.



**Record No: ZONE-
26-4**

Zoning Review
Application

Status: Active

Submitted On: 2/9/2026

Primary Location

113 Sears St
Ithaca, NY 14850

Owner

INHS
Sears St 113 Ithaca, NY 14850

Applicant

 Chau Pham



Ithaca, NY 14850

Zoning Review Application

Building Permit #

B-24-430

Building Type*

Single or Two Family Dwelling

**Are there any existing zoning variances for this
property?***

Yes



**Record No: ZONE-
26-5**

Zoning Review
Application

Status: Active

Submitted On: 2/9/2026

Primary Location

115 Sears St
Ithaca, NY 14850

Owner

INHS

Applicant

 Chau Pham



Ithaca, NY 14850

Zoning Review Application

Building Permit #

B-24-432

Building Type*

Single or Two Family Dwelling

**Are there any existing zoning variances for this
property?***

Yes

List variances*

Zoning variances were previously approved for the four properties at 113, 115, 117, and 119 Sears Street under a joint application (Appeal No. 3264). Because each property is a separate tax parcel, a separate application is being submitted for each. The details applicable to 115 Sear Street are outlined below.

An area variance from Section 325-8, Column 6, Lot Area: The Zoning Ordinance requires each lot in the R-2b district to be a minimum of 3,000 SF for a single-family home. The proposed lot for the 2-bedroom unit at 115 Sears Street was approved with a lot area of 2,533 SF or 83% of the required minimum lot area.

An area variance from Section 325-8, Column 11, Front Yard & Column 14/15, Rear Yard: The Zoning Ordinance requires a minimum front yard of 10' and a minimum rear yard of 20' for the proposed lots. A 4' front yard or 40% of the required front yard was approved. A rear yard of 12' 10" (or 64% of the required rear yard) was approved.

Has a previous Zoning Review Application been made for this proposal?*

No

Additional Application Notes

We are requesting an area variance from Section 325-8, Column 13, Side Yard. The Zoning Ordinance requires a minimum side yard setback of 5 feet. Based on the TG Miller as-built survey, the house at 115 Sears Street is located 4.8 feet from the side lot line, representing a 0.2-foot or 2.4-inch (approximately 4%) deviation from the required setback. The foundation was staked by the civil engineer at exactly the five-foot set-back line. However, the primary cause of the encroachment is that the wall overhangs the foundation and this overhang was not accounted for by the contractor. The wall itself is within the required setback as a result.

The soffit along the encroaching side of the building was always designed to be non-vented and fire-protected, and was constructed in accordance with the attached Simplex drawings (Sheets 2.0, 2.1, and 7.0, attached). In-line roof venting is provided in lieu of a vented soffit on this side of the building. Because the entire wall now encroaches slightly into the setback, we have added exterior fire detection and alarm devices, which will provide early detection and audible notification outside the building. Collectively, these measures significantly reduce fire risk and help ensure life safety and protection of adjacent properties despite the minimal setback variance.

Applicant Certification

I certify the information submitted with the Zoning Review Application is true to the best of my knowledge/belief. I also acknowledge that planning staff and the Board of Zoning Appeals may visit the property and I specifically permit such visits.

Applicant Signature*



Chau Pham

Feb 9, 2026



**Record No: ZONE-
26-6**

Zoning Review
Application

Status: Active

Submitted On: 2/9/2026

Primary Location

117 Sears St
Ithaca, NY 14850

Owner

INHS

Applicant

 Chau Pham


 @

Ithaca, NY 14850

Zoning Review Application

Building Permit #

B-24-433

Building Type*

Single or Two Family Dwelling

**Are there any existing zoning variances for this
property?***

Yes

List variances*

Zoning variances were previously approved for the four properties at 113, 115, 117, and 119 Sear Street under a joint application (Appeal No. 3264). Because each property is a separate tax parcel, a separate application is being submitted for each. The details applicable to 117 Sear Street are outlined below.

An area variance from Section 325-8, Column 6, Lot Area: The Zoning Ordinance requires each lot in the R-2b district to be a minimum of 3,000 SF for a single-family home. The proposed lots with a 2-bedroom unit at 117 Sear Street was approved with a lot area of 2,550 SF or 84% of the required minimum lot area.

An area variance from Section 325-8, Column 11, Front Yard & Column 14/15, Rear Yard: The Zoning Ordinance requires a minimum front yard of 10' and a minimum rear yard of 20' for the proposed lots. A 4' front yard or 40% of the required front yard was approved. A rear yard of 12' 10" (or 64% of the required rear yard) was approved.

Has a previous Zoning Review Application been made for this proposal?*

No

Additional Application Notes

We are requesting an area variance from Section 325-8, Column 13, Side Yard. The Zoning Ordinance requires a minimum side yard setback of 5 feet. Based on the TG Miller as-built survey, the house at 117 Sears Street is located 4.9 feet from the side lot line, representing a 0.1-foot or 1.2-inch (approximately 2%) deviation from the required setback. The foundation was staked by the civil engineer at exactly the five-foot set-back line. However, the primary cause of the encroachment is that the wall overhangs the foundation and this overhang was not accounted for by the contractor. The wall itself is within the required setback as a result.

The soffit along the encroaching side of the building was always designed to be non-vented and fire-protected, and was constructed in accordance with the attached Simplex drawings (Sheets 2.0, 2.1, and 7.0, attached). In-line roof venting is provided in lieu of a vented soffit on this side of the building. Because the entire wall now encroaches slightly into the setback, we have added exterior fire detection and alarm devices, which will provide early detection and audible notification outside the building. Collectively, these measures significantly reduce fire risk and help ensure life safety and protection of adjacent properties despite the minimal setback variance.

Applicant Certification

I certify the information submitted with the Zoning Review Application is true to the best of my knowledge/belief. I also acknowledge that planning staff and the Board of Zoning Appeals may visit the property and I specifically permit such visits.

Applicant Signature*



Chau Pham

Feb 9, 2026



**Record No: ZONE-
26-7**

Zoning Review

Application

Status: Active

Submitted On: 2/9/2026

Primary Location

119 Sears St
Ithaca, NY 14850

Owner

INHS

Applicant

 Chau Pham



Ithaca, NY 14850

Zoning Review Application

Building Permit #

B-24-431

Building Type*

Single or Two Family Dwelling

Are there any existing zoning variances for this
property?*

Yes

List variances*

Zoning variances were previously approved for the four properties at 113, 115, 117, and 119 Sears Street under a joint application (Appeal No. 3264). Because each property is a separate tax parcel, a separate application is being submitted for each. The details applicable to 119 Sears Street are outlined below.

An area variance from Section 325-8, Column 6, Lot Area: The Zoning Ordinance requires each lot in the R-2b district to be a minimum of 3,000 SF for a single-family home. The proposed lot for the 3-bedroom unit at 119 Sears Street was approved with lot areas of 2,669 SF or 89% of the minimum required lot area.

An area variance from Section 325-8, Column 11, Front Yard & Column 14/15, Rear Yard: The Zoning Ordinance requires a minimum front yard of 10' and a minimum rear yard of 20' for the proposed lots. A 4' front yard or 40% of the required front yard was approved. An 8'10" rear yard for 119 Sears Street (44% of the required rear yard) was approved.

Has a previous Zoning Review Application been made for this proposal?*

No

Additional Application Notes

We are requesting an area variance from Section 325-8, Column 13, Side Yard. The Zoning Ordinance requires a minimum side yard setback of 5 feet. Based on the TG Miller as-built survey, the house at 119 Sears Street is located 4.6 feet from the side lot line, representing a 0.4-foot or 4.8-inch (approximately 8%) deviation from the required setback. The foundation was staked by the civil engineer at exactly the five-foot set-back line. When the foundation was formed and poured, some imprecision occurred and there are spots where the foundation is over the line by an inch or so; however, the primary cause of the encroachment is that the wall overhangs the foundation and this overhang was not accounted for by the contractor. The wall itself is within the required setback as a result.

The soffit along the encroaching side of the building was always designed to be non-vented and fire-protected, and was constructed in accordance with the attached Simplex drawings (Sheets 2.0, 2.1, and 7.0, attached). In-line roof venting is provided in lieu of a vented soffit on this side of the building. Because the entire wall now encroaches slightly into the setback, we have added exterior fire detection and alarm devices, which will provide early detection and audible notification outside the building. Collectively, these measures significantly reduce fire risk and help ensure life safety and protection of adjacent properties despite the minimal setback variance.

Applicant Certification

I certify the information submitted with the Zoning Review Application is true to the best of my knowledge/belief. I also acknowledge that planning staff and the Board of Zoning Appeals may visit the property and I specifically permit such visits.

Applicant Signature*



Chau Pham

Feb 9, 2026

List variances*

Zoning variances were previously approved for the four properties at 113, 115, 117, and 119 Sear Street under a joint application (Appeal No. 3264). Because each property is a separate tax parcel, a separate application is being submitted for each. The details applicable to 113 Sear Street are outlined below.

An area variance from Section 325-8, Column 6, Lot Area: The Zoning Ordinance requires each lot in the R-2b district to be a minimum of 3,000 SF for a single-family home. The proposed lot for the 3-bedroom unit at 113 & was approved with lot areas of 2,669 SF or 89% of the minimum required lot area.

An area variance from Section 325-8, Column 11, Front Yard & Column 14/15, Rear Yard: The Zoning Ordinance requires a minimum front yard of 10' and a minimum rear yard of 20' for the proposed lots. A 4' front yard or 40% of the required front yard and an 8' 10" rear yard for 113 Sear Street (44% of the required rear yard) was approved.

Has a previous Zoning Review Application been made for this proposal?*

No

Additional Application Notes

We are requesting an area variance from Section 325-8, Column 13, Side Yard. The Zoning Ordinance requires a minimum side yard setback of 5 feet. Based on the TG Miller as-built survey, the house at 113 Sears Street is located 4.8 feet from the side lot line, representing a 0.2-foot or 2.4-inch (approximately 4%) deviation from the required setback. The foundation was staked by the civil engineer at exactly the five-foot set-back line. However, the primary cause of the encroachment is that the wall overhangs the foundation and this overhang was not accounted for by the contractor. The wall itself is within the required setback as a result.

The soffit along the encroaching side of the building was always designed to be non-vented and fire-protected, and was constructed in accordance with the attached Simplex drawings (Sheets 2.0, 2.1, and 7.0, attached). In-line roof venting is provided in lieu of a vented soffit on this side of the building. Because the entire wall now encroaches slightly into the set-back, we have added exterior fire detection and alarm devices, which will provide early detection and audible notification outside the building. Collectively, these measures significantly reduce fire risk and help ensure life safety and protection of adjacent properties despite the minimal setback variance.

Applicant Certification

I certify the information submitted with the Zoning Review Application is true to the best of my knowledge/belief. I also acknowledge that planning staff and the Board of Zoning Appeals may visit the property and I specifically permit such visits.

Applicant Signature*



Chau Pham

Feb 9, 2026

INHS Area Variance Request for Sears Street project—Reason for Appeal

INHS is applying to the Board of Zoning Appeals for a small area variance related to our Sears Street Community Housing Trust project. This notice explains the details of the proposed zoning non-compliance and the rationale for our request for a variance.

We are requesting an area variance for the Side Yard. The Zoning Ordinance requires a minimum side yard setback of 5 feet. Based on the as-built survey, the four houses at 113, 115, 117, and 119 Sears Street are located 4.8 ft, 4.8 ft, 4.9 ft, and 4.6 ft, respectively, from the side lot lines on one side of each home. This represents a deviation of about 0.1 to 0.4 foot (about 2-8% deviation) from the required setback. The foundations were staked by the civil engineer at exactly the five-foot set-back line. At 119 Sears Street, minor construction tolerances during foundation placement resulted in limited spots where the foundation extends over the line by approximately an inch. However, the primary cause of the encroachment is that the wall overhangs the foundation and this overhang was not accounted for by the contractor. The face of the wall itself is within the required setback and, as a result, there is no feasible way for us to meet the full five foot side yard requirement.

The soffit along the encroaching side of each building was always designed to be non-vented and fire-protected. In-line roof venting is provided in lieu of a vented soffit on this side of the building. Because the entire wall now encroaches slightly into the setback, we have added exterior fire detection and alarm devices, which will provide early detection and audible notification outside the building in the event of a fire. Collectively, these measures significantly reduce risk and help ensure life safety and protection of adjacent properties despite the minimal setback variance.



CITY OF ITHACA

108 East Green Street — 3rd Floor Ithaca, New York 14850-5690

DEPARTMENT OF PLANNING AND DEVELOPMENT

Lisa Nicholas, AICP, Director

Telephone: 607-274-6550

Fax: 607-274-6559

Email: dgrunder@cityofithaca.org

**— NOTICE OF APPEAL —
REGARDING ZONING OR SIGN ORDINANCE
CITY OF ITHACA, NEW YORK**

**APPEAL NO. ZONE-26-4 thru
ZONE 26-7**

TO: Owners of Property within 200 feet of 113, 115, 117, 119 Sears St, Ithaca, NY 14850 and others interested.
(property address)

FROM: Ithaca Neighborhood Housing Services, Inc. applicable to property named above, in a(n) R-2b zone.
(name of person or agency making appeal)

REGARDING: (check appropriate box)

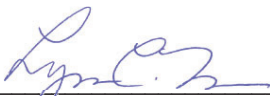
- ☒ Area Variance
☐ Special Permit
☐ Use Variance
☐ Sign Variance
☐ Action, Decision, or Interpretation of Zoning Officer

City regulations require you be notified of this appeal to the Board of Zoning Appeals (BZA), as described in the attached letter and provide the opportunity for you to comment on it and/or attend the meetings listed below. Anyone considered an interested party may speak for or against the appeal at the meetings listed below, or submit a written statement to the BZA before its designated meeting. There is a time limit of three (3) minutes for each interested party to address the BZA during the Public Hearing portion of the meeting.

The Board of Zoning Appeals bases its decision primarily on the written evidence submitted and presented to it, the testimony of interested parties, and zoning and legal considerations. The written case record will be available for review at the Planning Division, City Hall, 108 E. Green St., Third Floor, beginning one week before the scheduled BZA meeting. This case has also been referred to the City's Planning and Development Board that will advise the BZA, if granting the relief sought by the appellant will affect long-term planning objectives. The date of the Planning Board's meeting regarding this appeal is also listed below.

The PLANNING BOARD will consider this case on N/A at 6:00 P.M. in Common Council Chambers, City Hall, 108 E. Green St. Ithaca.

The BOARD OF ZONING APPEALS will consider this case on March 3, 2026 at 5:30 P.M. in Common Council Chambers, City Hall, 108 E. Green St. Ithaca.


Signature of Appellant

115 W. Clinton St, Ithaca, NY 14850
Address

02/10/2026
Date

Parcel #	Owner		Mailing Address	
46.-7-15	Daniel J Burke	Kelly A Musick	212 Queen St	Ithaca NY 14850
46.-7-16	Suzy Lee	George Maltezos	428 N Tioga St	Ithaca NY 14850
46.-7-17	Eric Trichon		118 Cascadilla Ave	Ithaca NY 14850
46.-7-18	Ronald Kenigson	Teresa M Burns	116 Cascadilla Ave	Ithaca NY 14850
49.-1-10	Zellman Warhaft	Gail Warhaft	110 Sears St Apt 2	Ithaca NY 14850
49.-1-11	Ariana Klinkov		108 Sears St	Ithaca NY 14850
49.-1-12	Ronald D Schmitt	Carol Schmitt	302 E Upland Rd	Ithaca NY 14850
49.-1-13	Thomas J Shelley	Tania A Dayanoff	118 E Court St Apt 2	Ithaca NY 14850
49.-1-14	Paul Acosta	Tamara Acosta	114 Court St E	Ithaca NY 14850
49.-1-15	First Pres Church of Ithaca		315 N Cayuga St	Ithaca NY 14850
49.-1-18	Cayuga True, LLC		407 Cayuga St N	Ithaca NY 14850
49.-1-19	409 N. Cayuga Street, LLC		1022 East Shore Dr	Ithaca NY 14850
49.-1-2	Nancy Osborn	James Mazza	111 Cascadilla Ave	Ithaca NY 14850
49.-1-20	Jeremy S Dietz	Gail Schapiro Salk	421 N Aurora St	Ithaca NY 14850
49.-1-21	Dreaming Earth Properties, LLC		323 N Albany St	Ithaca NY 14850
49.-1-22	Linda M Godfrey		415 Cayuga St N	Ithaca NY 14850
49.-1-23	Barken Family Realty LLC		125 Genung Cir	Ithaca NY 14850
49.-1-24	Barken Family Realty LLC		125 Genung Cir	Ithaca NY 14850
49.-1-25	Marguerite Wells	Alexia Hain	421 Cayuga St N	Ithaca NY 14850
49.-1-26	Douglas J Green		423 N Cayuga St	Ithaca NY 14850
49.-1-3	Steven C Kyle	Sheila M Kyle	130 Sears St	Ithaca NY 14850
49.-1-4	Ashley M Miller		126 Sears St, Apt 1	Ithaca NY 14850
49.-1-5	Mazza and Amici, LLC		307 N Tioga St	Ithaca NY 14850
49.-1-6	Michael D I Cederstrom		120 Sears St	Ithaca NY 14850
49.-1-7	Ronald D Schmitt	Carol Schmitt	302 E Upland Rd	Ithaca NY 14850
49.-1-8	Suzanne Schwartz		114 Sears St	Ithaca NY 14850
49.-1-9	Christopher Duplais	Corrie Moreau	112 Sears St	Ithaca NY 14850
49.-2-1	Mark Karlsen	Micaela Karlsen	PO Box 6760	Ithaca NY 14851
49.-2-11	Oukris Sai-Ngarm	Tananchanok Sai-Ngarm	3524 62nd St, Apt 1	Woodside NY 11377
49.-2-12	Panida Sai-Ngarm		3524 62nd St, Apt 2F	Woodside NY 11377
49.-2-13	Suicide Prvnt Foundation Inc		PO Box 6434	Ithaca NY 14851
49.-2-14	Kyri Murdough		107 Sears St	Ithaca NY 14850
49.-2-15	Mallory Ballinger	Molly Corinne Womack	109 Sears St	Ithaca NY 14850
49.-2-2	Julie Bakos		123 Cascadilla Ave	Ithaca NY 14850
49.-2-20	KBM Properties LLC		PO Box 143	Ithaca NY 14851
49.-2-21	Aaron E Speiser	Sara M Speiser	123 Sears St	Ithaca NY 14850
49.-2-22	Laura B Kozlowski		14 Westminster Ave	Haver Hill MA 01830
49.-2-3	Christopher George Corp		418 Tioga St N	Ithaca NY 14850
49.-2-4	Mia Pancaldo		710 N Tioga St	Ithaca NY 14850
49.-2-6.1	No Data Found	No Data Found	No Data Found	No Data Found
49.-2-6.2	No Data Found	No Data Found	No Data Found	No Data Found
49.-2-8	Temple Beth-El, Inc		402 N Tioga St	Ithaca NY 14850
49.-2-9	Temple Beth-El, Inc		402 N Tioga St	Ithaca NY 14850



CITY OF ITHACA

108 East Green Street — 3rd Floor Ithaca, New York 14850-5690

DEPARTMENT OF PLANNING AND DEVELOPMENT

Lisa Nicholas, AICP, Director

Telephone: 607-274-6550

Fax: 607-274-6559

Email: dgrunder@cityofithaca.org

CERTIFICATION OF MAILING

RE: City of Ithaca Board of Zoning Appeals

ZONE-26-4 thru
Appeal # ZONE 26-7

I, Chau Pham, affirm that all property owners within two hundred (200) feet from the boundaries of the lot under consideration have been mailed a copy of the enclosed notice on or before 02/12/2026. I affirm that the notice was mailed to the property owners at the addresses shown on the attached list of owners, by depositing the copy in a postpaid properly addressed wrapper, in a post office or an official depository under the exclusive care and custody of the United States Post Office Department. I further affirm that the names and addresses of the property owners are the same as the most recent assessment roll.

(Signature)

PLEASE SUBMIT THIS FORM TO:

City of Ithaca Planning Division
108 E. Green St., 3rd Fl.
Ithaca, NY 14850

Phone: (607) 274-6550

Fax: (607) 274-6559

To: Board of Zoning Appeals and Common Council Members

From: Mary L. White, resident, 114 Sears Street

INHS for many years gained much deserved respect. However, it appears that the current management has made some mistakes.

I do not believe that the City of Ithaca should grant a zoning variance for the 4 new houses on Sears Street. That the houses are sitting there empty is not a reason to agree that a zoning variance is appropriate and necessary.

This project is more than 2 years behind schedule. The buyers have been waiting and hoping and believing that they were going to get comfortable and safe places to live some day. I think that these buyers have been deceived.

Everything about this project has been bungled from the very beginning. INHS wanted 4 houses on the site: there was room for 3. They built 4 anyway. Now they want the City to approve this mess. "It's only a couple of inches," is what one INHS staffer said to me.

INHS is asking for a return to the 19th century. Much of the housing in the old neighborhoods is too close together for safety. This existing present danger is not an excuse to ignore zoning rules that were put in place to prevent spreading fire destruction. We do not need new houses to be jammed together onto tiny plots. The zoning rules were written with common sense, offering a reasonable chance of safety in new construction. Does anyone remember the fire on the corner of Cayuga and Farm that took out the Greenstar building with apartments above, a restaurant, and 2 other houses?

There are more problems with these houses than the overcrowding. Whoever the supervisors may be, they appear to have been either lax or ignorant. Since the beginning of construction until today, Feb 23, 2026, there has been the appearance of mismanagement and confusion at this construction site. Today, there were workers going into one of the houses carrying tall ladders. Are there leaks in the attic? Again? More mold? These are valid questions.

After doing and redoing the excavation several times, they built the foundations and brought in the buildings on trucks. And here something went really wrong. As the bottom and top sections were brought in and joined, the builders failed to seal and secure adequately. Moisture entered, mold grew. Those bright new houses were thoroughly infested with mold. They failed inspection.

Then came months of work. Remediation crews came to the site in hazmat suits and carried out all of the insulation. Apparently, from my across-the-street view, most or all of the interior sheetrock walls and ceilings were torn out and replaced. The interiors of the houses were entirely rebuilt.

Who knows how much this mismanagement cost? Has anyone been held responsible for this preventable situation? There were people working inside those houses for a year. Do the buyers know that the "new" houses they are getting had to be treated for mold before they could be considered minimally safe for occupancy? I believe that it is reasonable to ask for an investigation into the waste of funds and to consider whether these houses are suitable for habitation or for condemnation.

Pleading for variance from reasonable zoning laws after the fact of improper construction is dangerous on two levels. There is the real danger of fire spreading from one to the other and to the rest of the neighborhood if anything started. And there is the danger of precedent. If INHS is allowed to sell buildings that are in violation of fire safety regulations, then every contractor in the region will have reason to push or overstep those limits in any and all new construction. If INHS can get a variance after the fact, then any other building could argue that they deserve the same.

INHS defied rules they knew existed. I do not agree that since the houses are there, the construction should be approved.

Sincerely,

Mary L. White

114 Sears Street

LEGEND

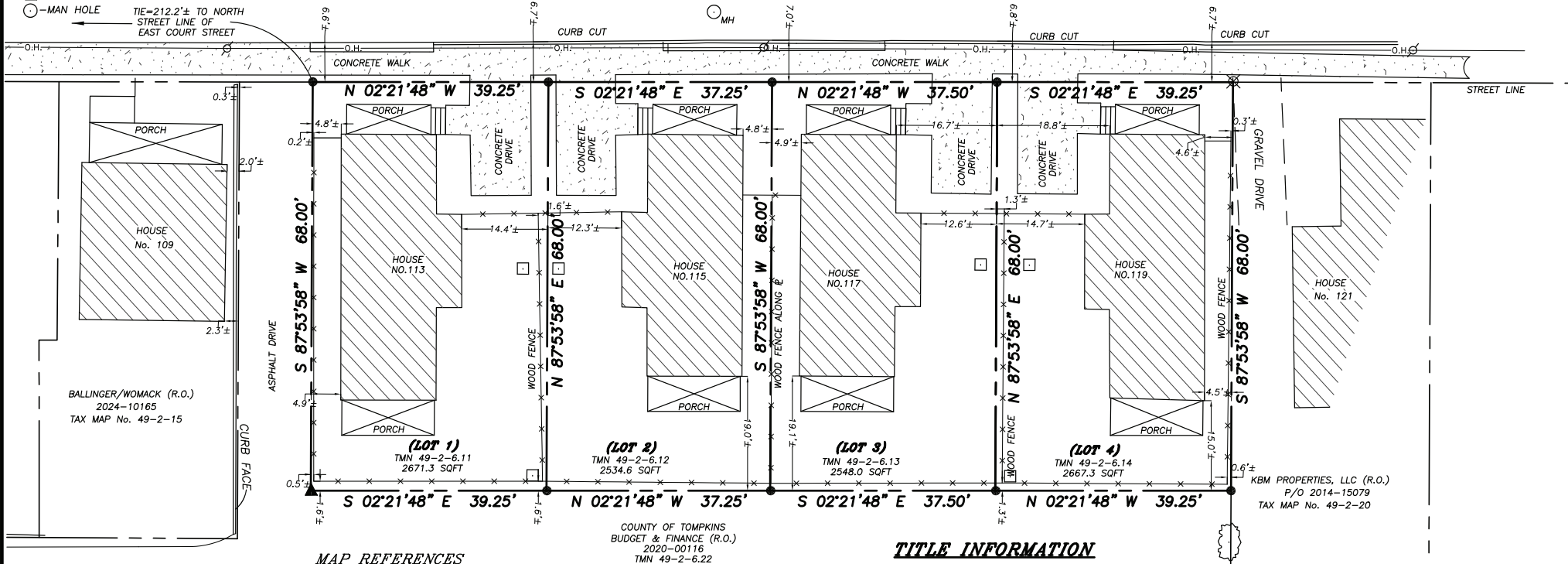
- △ -COMPUTED POINT
- -PIN SET WITH CAP
- -IRON PIN FOUND
- ⊗ -IRON PIPE FOUND
- -UTILITY POLE
- ▲ -NAIL FOUND
- -DRY WELL
- -MAN HOLE

TIE=212.2± TO NORTH
STREET LINE OF
EAST COURT STREET

CURB FACE

SEARS STREET

PER MAP REF. 1



ABSTRACT REFERENCE
STEWART TITLE GUARANTY COMPANY ORDER
NO. 81307683 DATED DECEMBER 19, 2024

MAP REFERENCES

- 1.) SUBDIVISION PLAT SHOWING LANDS OF THE COUNTY OF TOMPKINS SEARS STREET DATED 7/26/2023 BY T.G. MILLER P.C. AND FILED AS INSTRUMENT NO. 2024-03778 IN THE T.C.C.O.
- 2.) SUBDIVISION PLAT NO. 408, 412-414 NORTH TOGA STREET & 117-119 SEARS STREET DATED 8/2/2022 BY T.G. MILLER P.C. AND FILED AS INSTRUMENT NO. 2022-10831

COUNTY OF TOMPKINS
BUDGET & FINANCE (R.O.)
2020-00116
TMN 49-2-6.22

ASPHALT
PARKING

TITLE INFORMATION

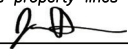
ITHACA NEIGHBORHOOD
HOUSING SERVICES, INC.
INSTRUMENT NO. 2024-08895
TAX MAP NO. 49-2-6.11, 6.12, 6.13, 6.14
TOTAL AREA= 0.239 ACRES TO STREET LINE

KBM PROPERTIES, LLC (R.O.)
P/O 2014-15079
TAX MAP No. 49-2-20

WARNING
ALTERATION OF THIS MAP NOT
CONFORMING TO SECTION 7206,
SUBDIVISION 2, NEW YORK STATE
EDUCATION LAW, ARE PROHIBITED
BY LAW. ALL CERTIFICATIONS
HEREIN ARE VALID FOR THIS MAP
AND COPIES THEREOF ONLY IF S&D
MAP OR COPIES BEAR THE IMPRESSION
SEAL OF THE LICENSED LAND SURVEYOR
WHOSE SIGNATURE APPEARS HEREON.

CERTIFICATION

I hereby certify to
that I am a licensed land surveyor, New York State License
No. 051180, and that this map correctly delineates an
actual survey on the ground made by me or under my direct
supervision and that I found no visible encroachments either
way across property lines except as shown hereon.

SIGNED:  DATED: 12/17/2025

T.G. MILLER, P.C.
ENGINEERS AND SURVEYORS
605 WEST STATE STREET, SUITE A
ITHACA, NEW YORK 14850
WWW.TGMILLERPC.COM
607-272-6477

TITLE:

SURVEY MAP

NO. 113, 115, 117, 119 SEARS STREET

CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK

DATE:
9/24/2025

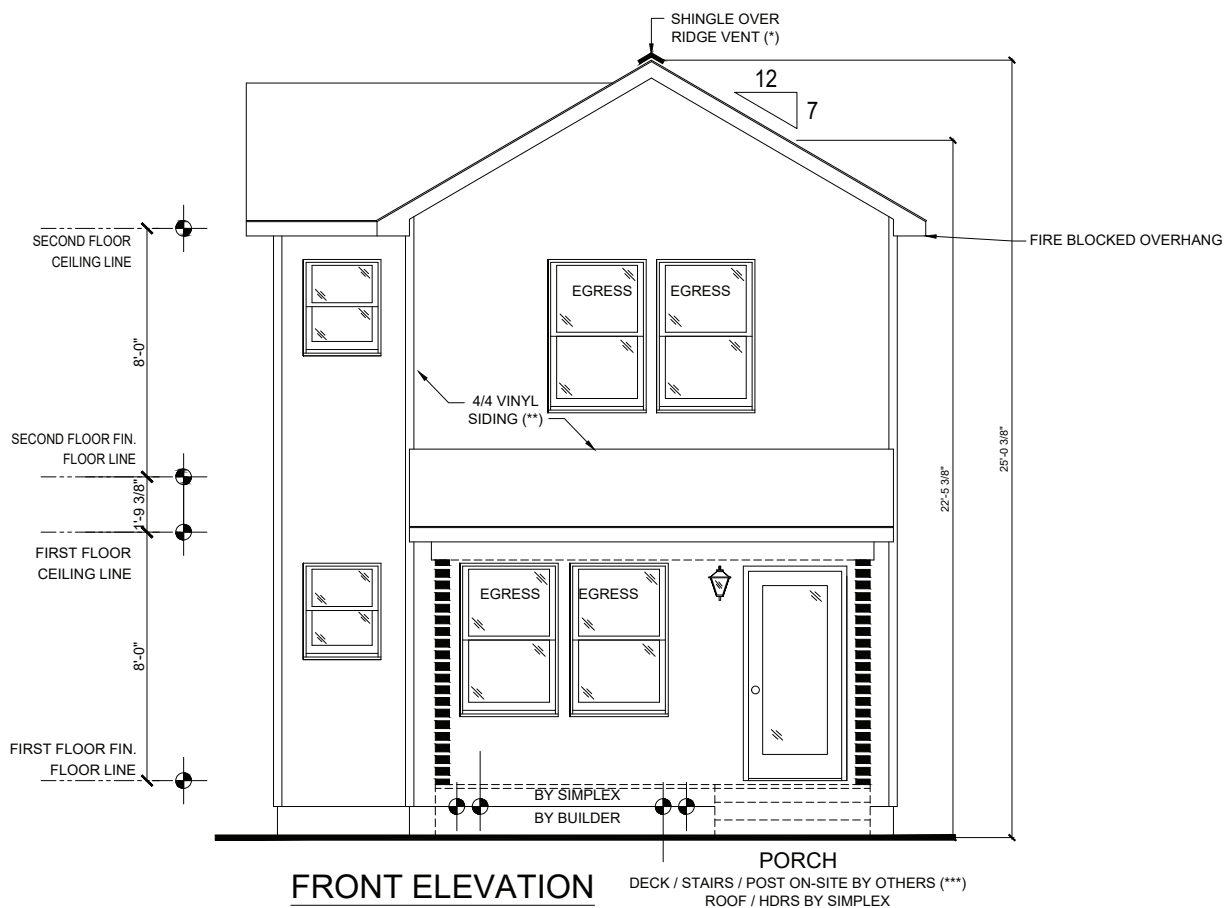
S25936

SCALE:
1"=16'

REVISED

11/7/2025-REVISED TO INCORPORATE
REFERENCE TO UPDATED ABSTRACT OF TITLE,
LAST DATE OF FIELD WORK 9/24/2025
12/17/2025-REVISED TO ADD ADDITIONAL
BUILDING SETBACKS, LAST DATE OF FIELD
WORK 9/24/2025





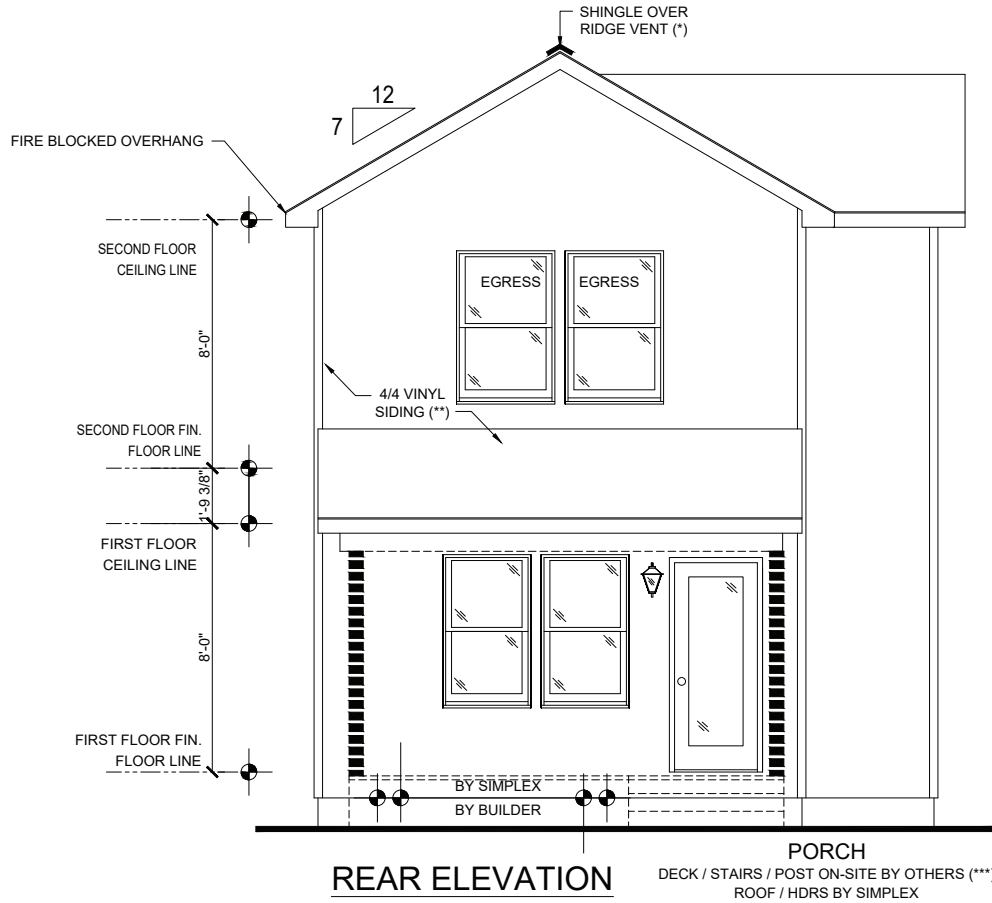
Simplex Industries
1 Simplex Drive
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CUSTOMER		6. A A A	
SPEC		5. A A A	
113 SEARS STREET		4. A A A	
THACHA, NY 14850		3. A A A	
DESIGNER		2. A A A	
INHS		1. 3-7-24 PLAN CHANGES PER BUILDER REQUEST JCM	
113 W. CLINTON STREET		NO.	DATE
THACHA, NY 14850		REVISIONS	
DRAWING TITLE		BUILDING ELEVATIONS	



Eng. No:	23-0703
Eng. Date:	11/7/23
SERIAL No:	0000
DRAWING BY:	JCM
CHECKED BY:	A
DRAWING No	
2.0	
SCALE:	1/4" = 1'-0"



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CUSTOMER		SPEC		113 SEARS STREET ITHACA, NY 14850		113 W CLINTON STREET ITHACA, NY 14850		DRAWING TITLE	
1	DATE	3-7-24	PLAN CHANGES PER BUILDER REQUEST	BUILDING ELEVATIONS					
2	DATE	3-7-24	PLAN CHANGES PER BUILDER REQUEST	BUILDING ELEVATIONS					
3	DATE	3-7-24	PLAN CHANGES PER BUILDER REQUEST	BUILDING ELEVATIONS					
4	DATE	3-7-24	PLAN CHANGES PER BUILDER REQUEST	BUILDING ELEVATIONS					
5	DATE	3-7-24	PLAN CHANGES PER BUILDER REQUEST	BUILDING ELEVATIONS					
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9	DATE	3-7-24	PLAN CHANGES PER BUILDER REQUEST	BUILDING ELEVATIONS					
10	DATE	3-7-24	PLAN CHANGES PER BUILDER REQUEST	BUILDING ELEVATIONS					

REGISTERED ARCHITECT / PE STAMP

23-0703

11/7/23

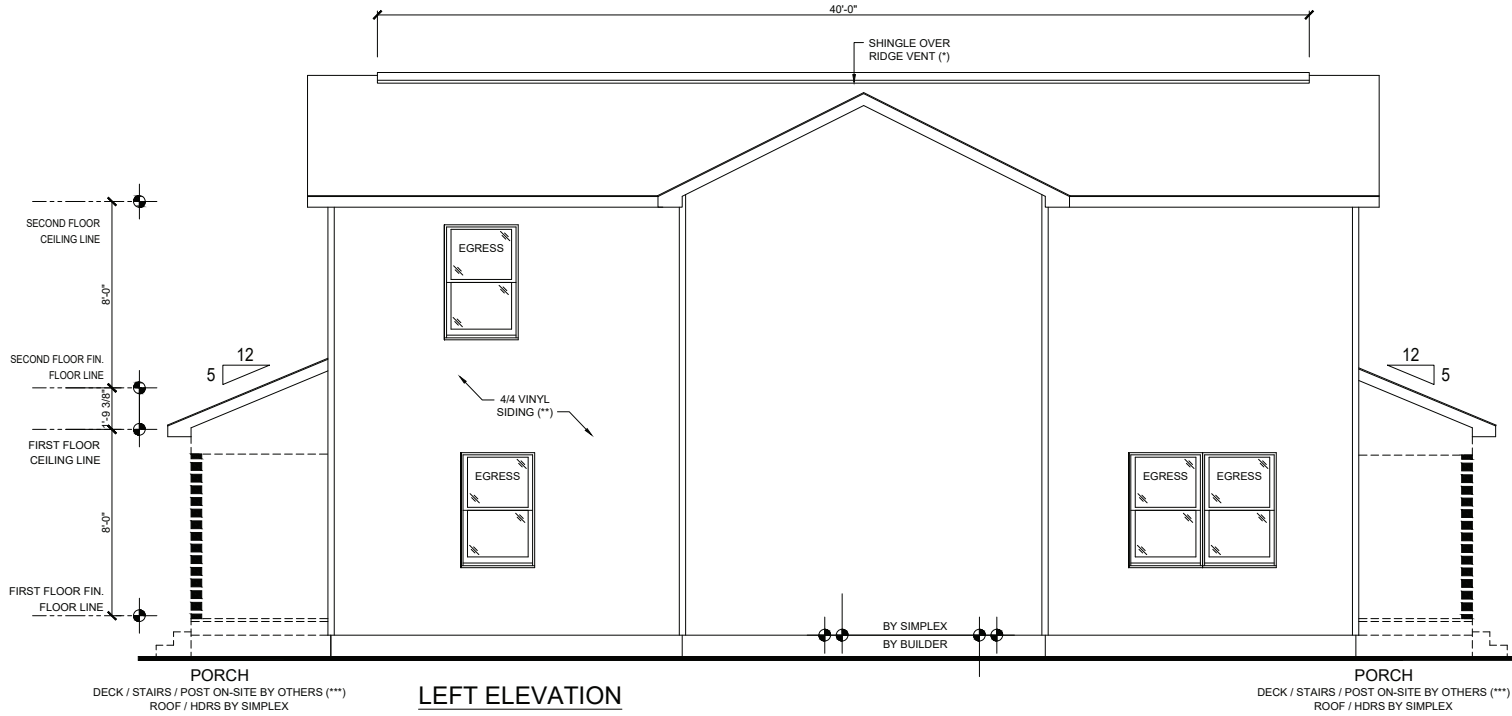
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JCM

JA

2.1

1/4" = 1'-0"



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 3/13/2024
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REV	DATE	DESCRIPTION
1	3-7-24	PLAN CHANGES PER BUILDER REQUEST
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REGISTERED ARCHITECT / PE STAMP

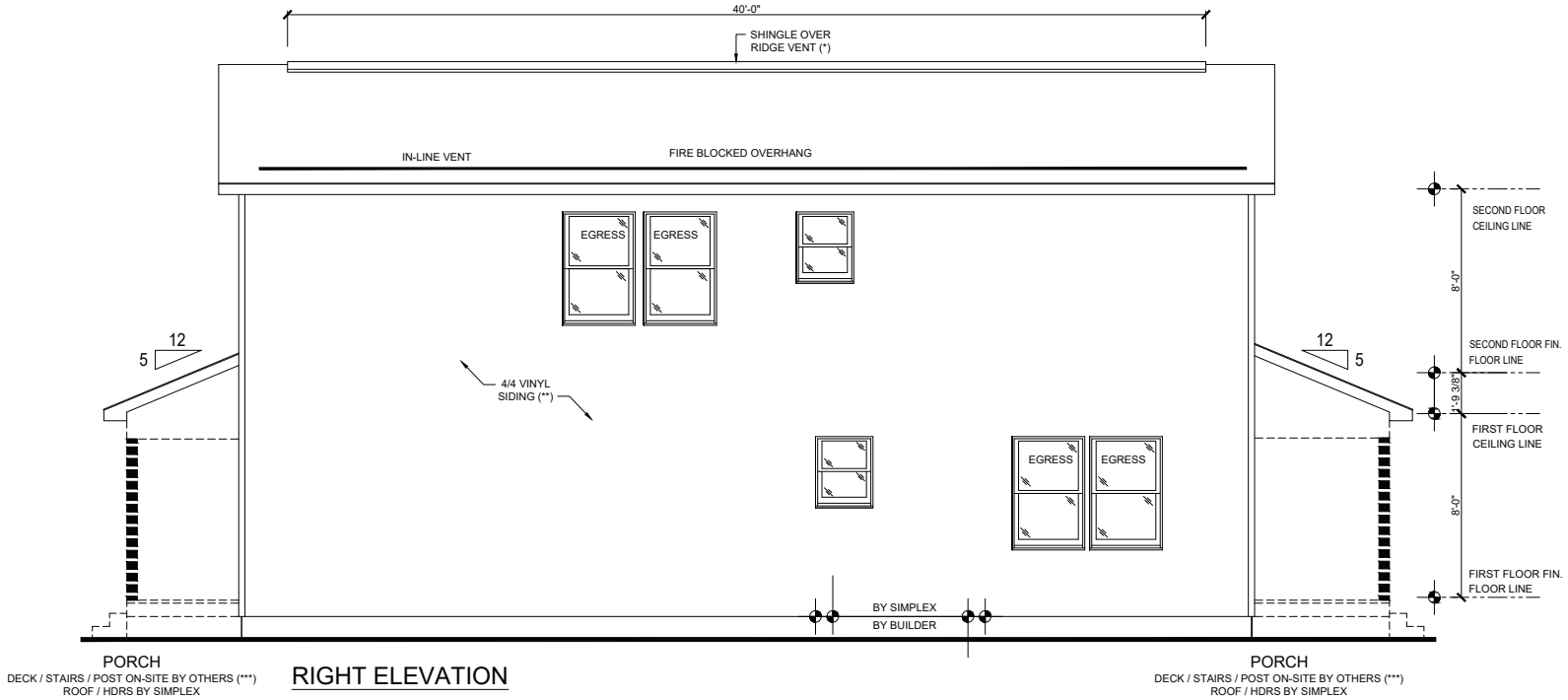


Eng. No: 23-0703
 Eng. Date: 11/7/23
 SERIAL No: 0000
 DRAWING BY: JCM
 CHECKED BY: JA
 DRAWING No:

2.2

SCALE: ----

BUILDING ELEVATIONS



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Eng. No.: 23-0703
Eng. Date: 11/7/23
SERIAL No.: 0000
DRAWING BY: JCM
CHECKED BY: JA
DRAWING No.: 2.3

SCALE: 3/16" = 1'-0"

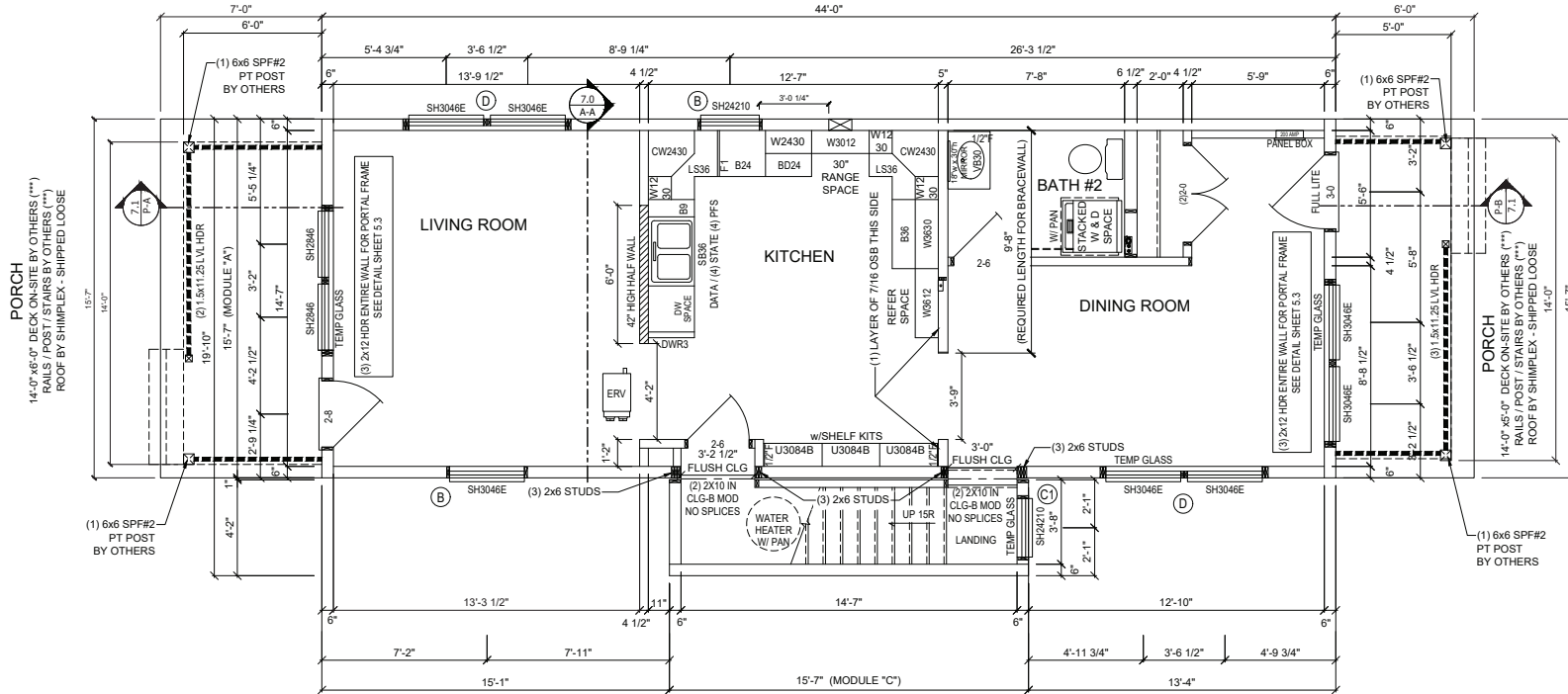
GENERAL NOTES:

8'-0" CEILING HEIGHT

WINDOWS HEADER HEIGHT @ 6'-10 1/4" UNLESS NOTED OTHERWISE

INTERSTATE SGL HUNG WINDOWS - TRIPLE PANE

- (A) = TRIPLE 2x10 (SPF #2) HEADERS W/ RIGID FOAM INSULATION
(B) = DOUBLE 2x10 (SPF #2) HEADERS W/ FG INSULATION
(C) = SINGLE 2x10 (SPF #2) HEADER W/ FG INSULATION
(D) = DOUBLE 1.5 x 9.25 LVL HEADERS W/ FG INSULATION



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NO.	DATE	DESCRIPTION	APPROVED
1	3-7-24	PLAN CHANGES PER BUILDER REQUEST	JCM
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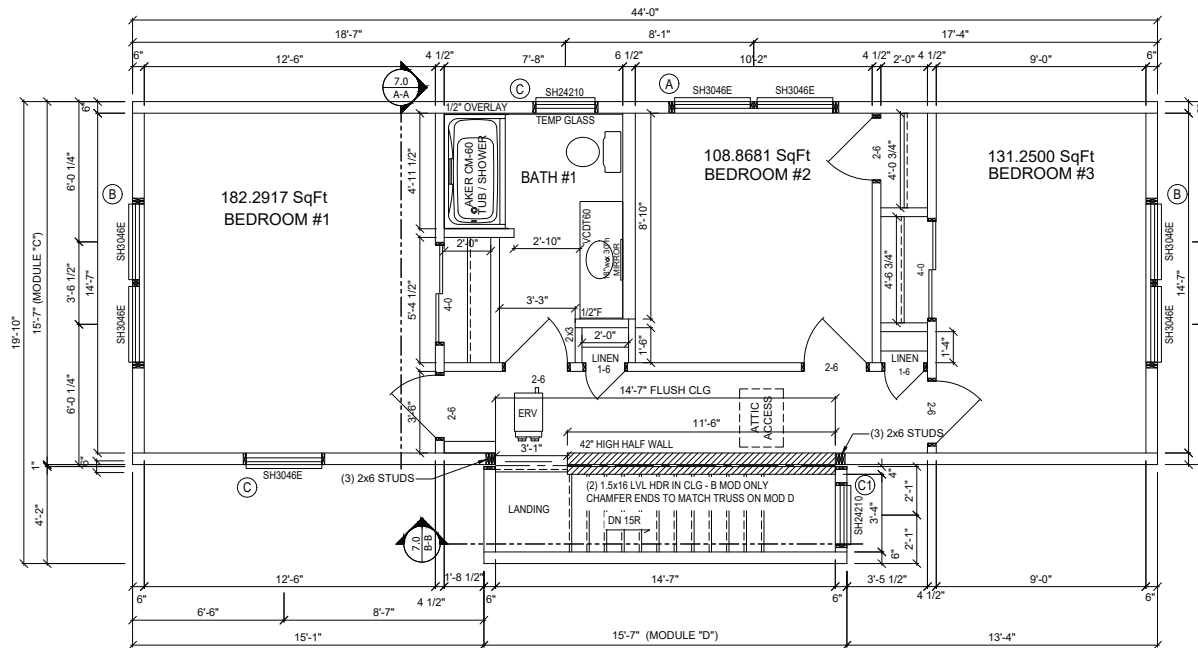


Eng. No.: 23-0703
Eng. Date: 11/7/23
SERIAL No.: 0000
DRAWING BY: JCM
CHECKED BY: JA
DRAWING No.: 3.0

SCALE: 3/16" = 1'-0"

1st. FLOOR PLAN

WINDOWS HEADER HEIGHT @ 6'-10 1/4" UNLESS NOTED OTHERWISE
INTERSTATE SGL HUNG WINDOWS - TRIPLE PANE



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INC.
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approved building system

- (A) = TRIPLE 2x10 (SPF #2)
HEADERS W/ RIGID FOAM
INSULATION
- (B) = DOUBLE 2x10 (SPF #2) HEADERS
W/ FG INSULATION
- (C) = SINGLE 2x10 (SPF #2) HEADER
w/ FG INSULATION
- (C1)



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CUSTOMER SPEC 113 SEARS STREET THACA, NY 14850 DRAWN BY: JCM INHS 113 W CLINTON STREET THACA, NY 14850	6	A	A	A	A	THIS DRAWING IS THE PROPERTY OF SIMPLEX INDUSTRIES. IT IS TO BE USED ONLY FOR THE PROJECT AND SPECIFICATIONS INDICATED HEREON. IT IS NOT TO BE REPRODUCED, COPIED, OR USED FOR ANY OTHER PURPOSE WITHOUT THE WRITTEN CONSENT OF SIMPLEX INDUSTRIES, INC. DUE TO MOISTURE CONTENT OF WOOD, SOME OF THE LUMBER MAY BE DAMAGED BY THE EXTERIOR FINISH APPLICATION. EXTERIOR FINISH SHOULD CONSULT THE RECOMMENDED INSTALLATION INSTRUCTIONS TO ACCOUNT FOR POSSIBLE WOOD SHRINKAGE.
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PLAN CHANGES PER BUILDER REQUEST		JCM			DUE TO MOISTURE CONTENT OF WOOD, SOME OF THE LUMBER MAY BE DAMAGED BY THE EXTERIOR FINISH APPLICATION. EXTERIOR FINISH SHOULD CONSULT THE RECOMMENDED INSTALLATION INSTRUCTIONS TO ACCOUNT FOR POSSIBLE WOOD SHRINKAGE.	
No	DATE	3/7/24	APPROVED	JCM		
REVISIONS						

REGISTERED ARCHITECT / P.E. STAMP



Murray J. Miller

DRAWING TITLE

2ND FLOOR PLAN

Eng. No: 23-0703

Eng. Date: 11/7/23

SERIAL No: 0000

DRAWING BY: JCM

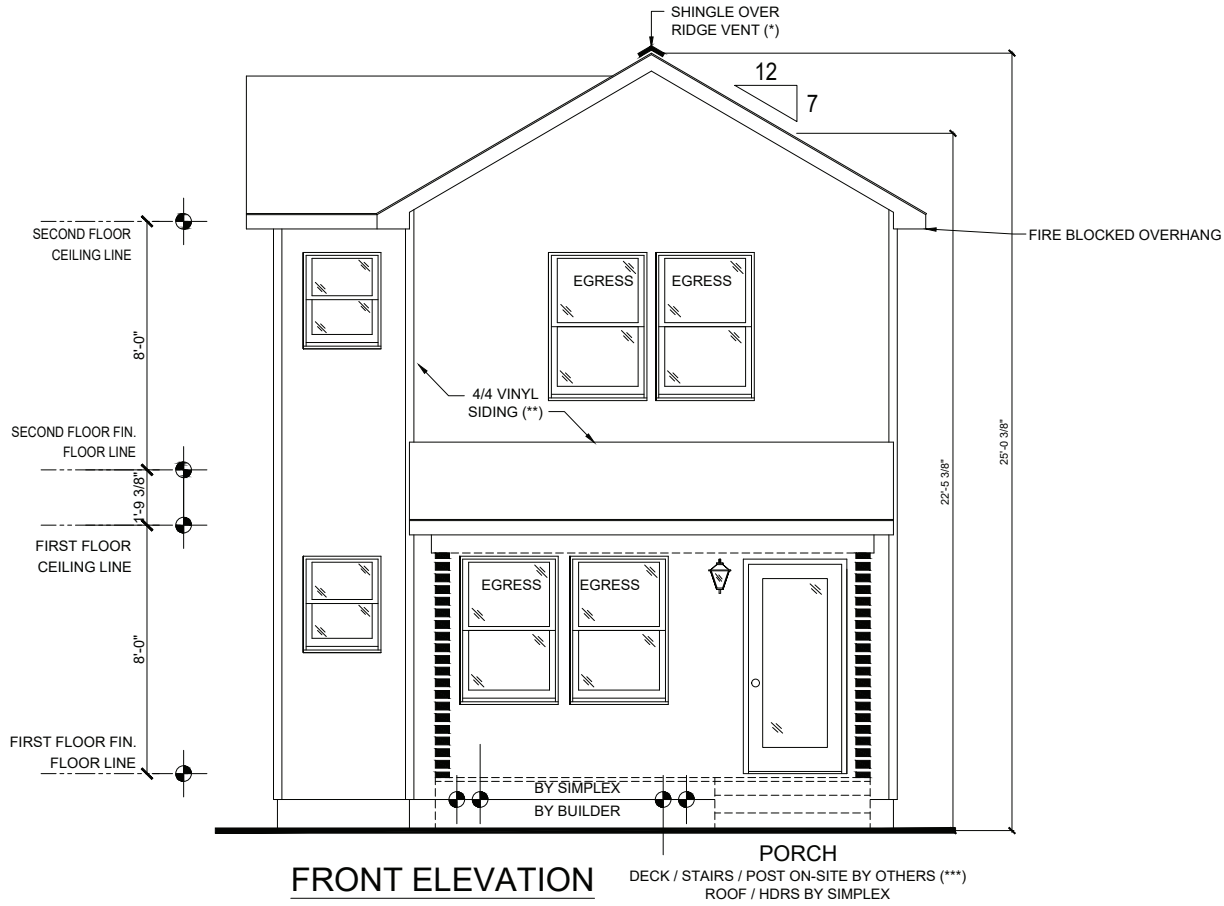
CHECKED BY: JA

FRAMING No:

3.1

SCALE

3/16" = 1'-0"



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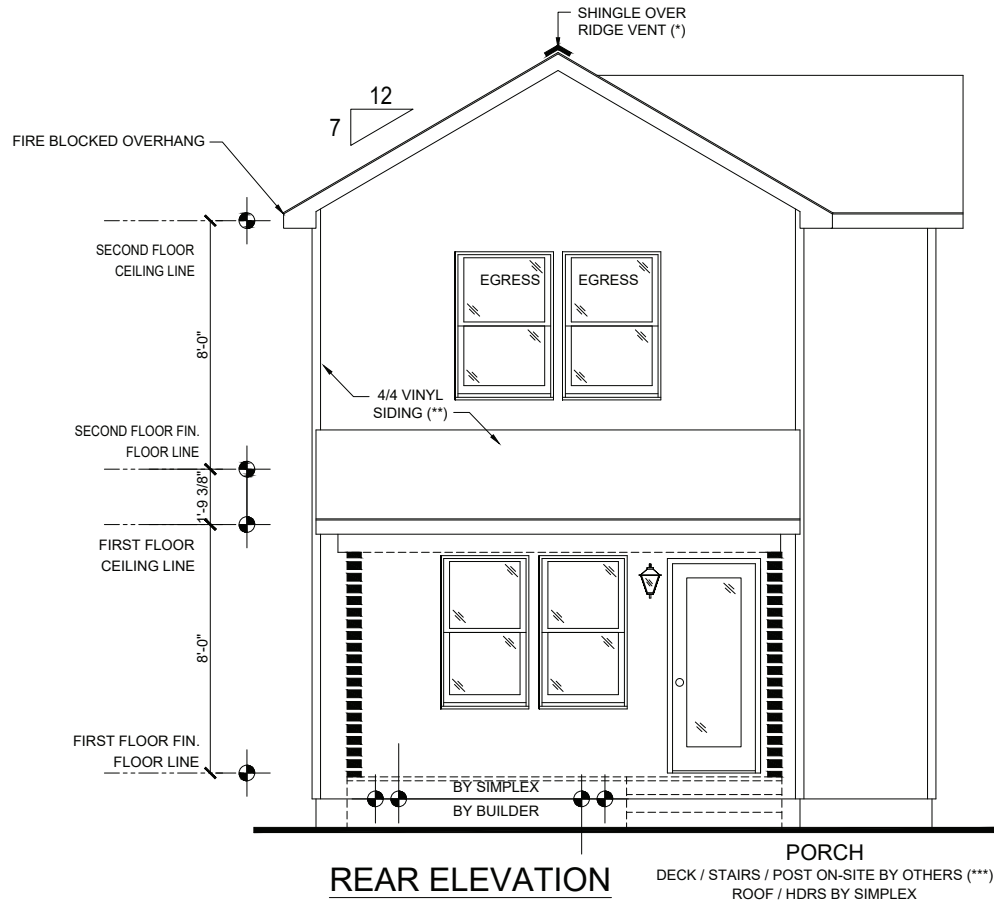
NO.	DATE	REVISIONS
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Eng. No.	23-0704
Eng. Date	08/08/23
Serial No.	0000
DRAWING BY	SDD
CHECKED BY	A
DRAWING No.	

SCALE	2.0 1/4" = 1'-0"
-------	---------------------

BUILDING ELEVATIONS



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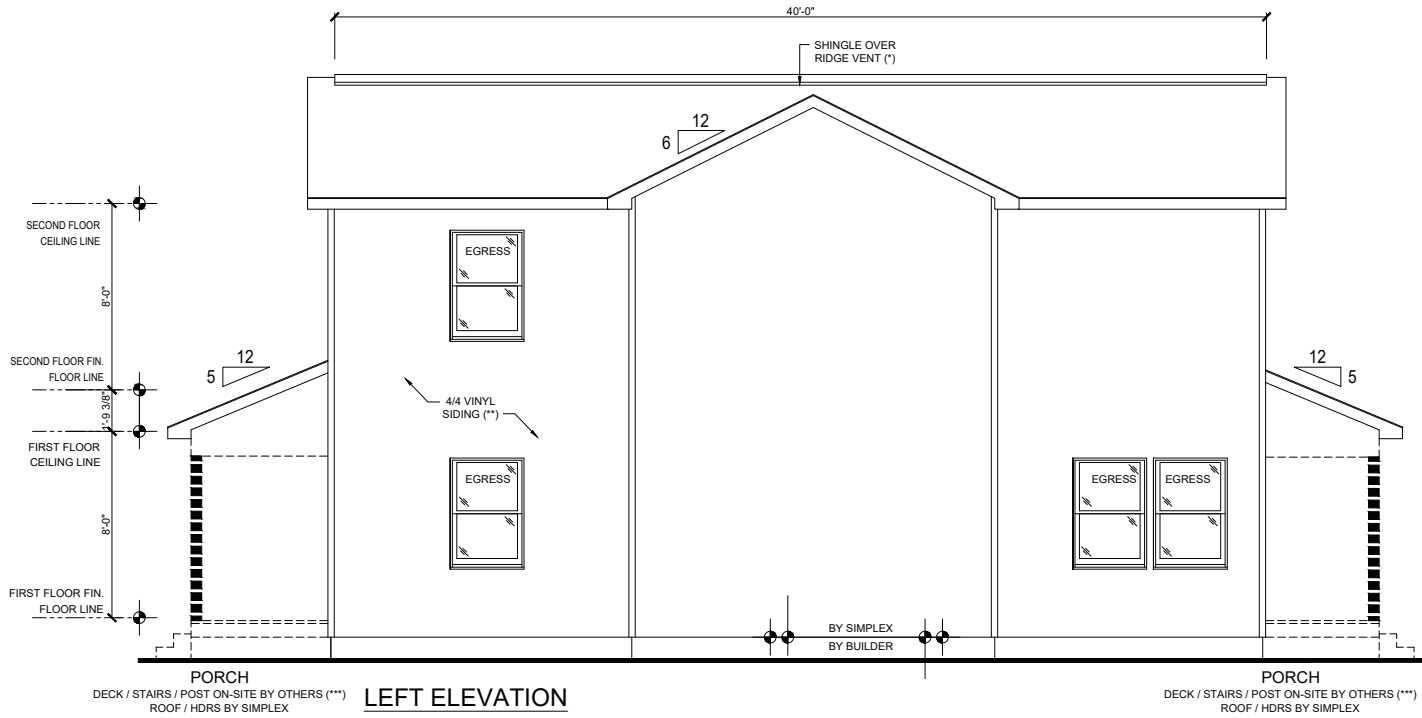
REVISIONS	
NO.	DESCRIPTION
1	DATE
2	DATE
3	DATE
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7	DATE
8	DATE
9	DATE
10	DATE

CUSTOMER	115 SEARS STREET ITHACA, NY 14850
PROJECT	115 W. CLINTON STREET ITHACA, NY 14850
DRAWING TITLE	BUILDING ELEVATIONS



Eng. No.	23-0704
Eng. Date	08/08/23
Serial No.	0000
DRAWING BY	SDD
CHECKED BY	A
DRAWING No.	

SCALE	2.1
	1/4" = 1'-0"



LEFT ELEVATION

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NO.	DATE	REVISIONS
1	A	DESCRIPTION
2	A	
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CUSTOMER: SPEC 115 SEARS STREET ITHACA, NY 14850

DRAWING TITLE: BUILDING ELEVATIONS



REGISTERED ARCHITECT / PE STAMP

Eng. No.: 23-0704

Eng. Date: 08/08/23

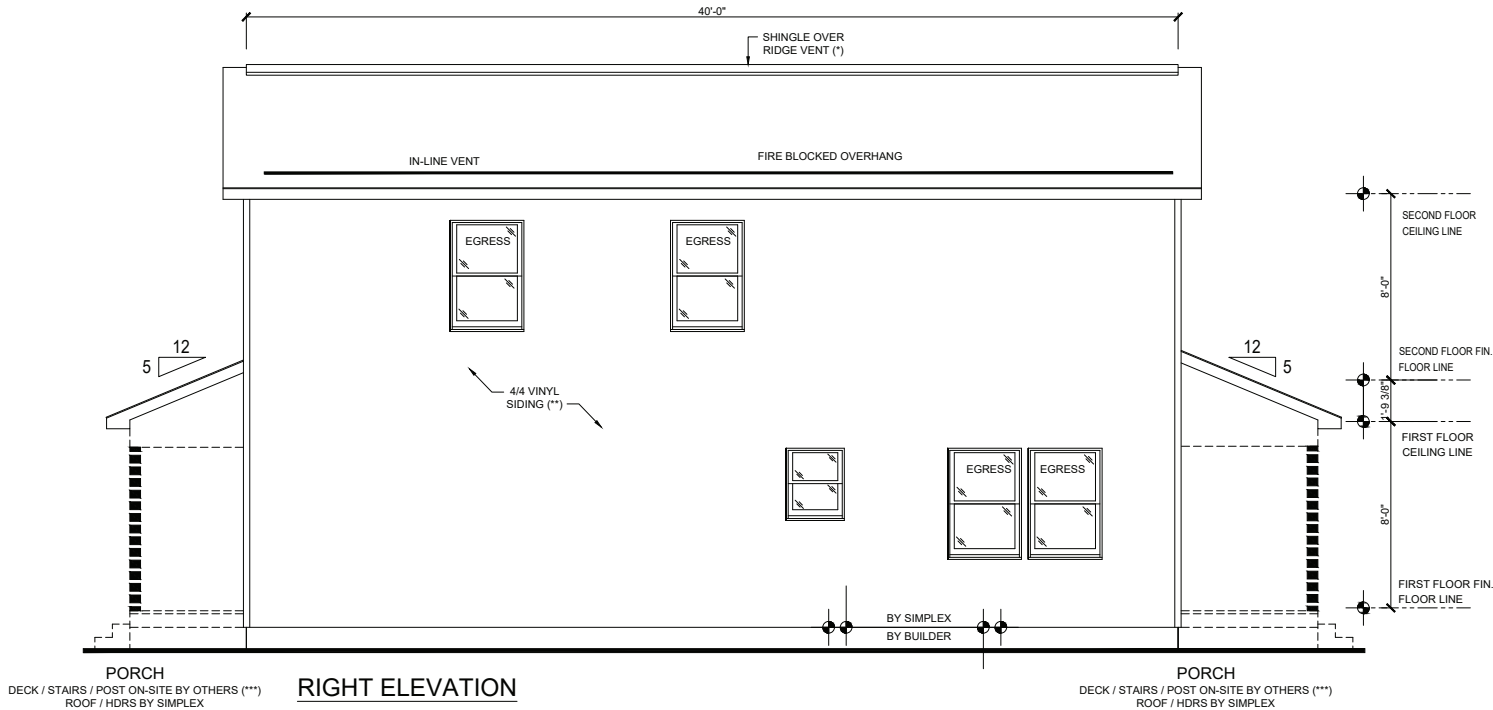
SERIAL No.: 0000

DRAWING BY: SDD

CHECKED BY: JA

DRAWING No.: 2.2

SCALE: ----



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3/19/2024
Derived from NYDOS
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REVISIONS	
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CUSTOMER: SPEC
115 SEARS STREET
ITHACA, NY 14850

115 W CLINTON STREET
ITHACA, NY 14850

REGISTERED ARCHITECT / PE STAMP

MURRAY J. MILLER
013003-01
STATE OF NEW YORK

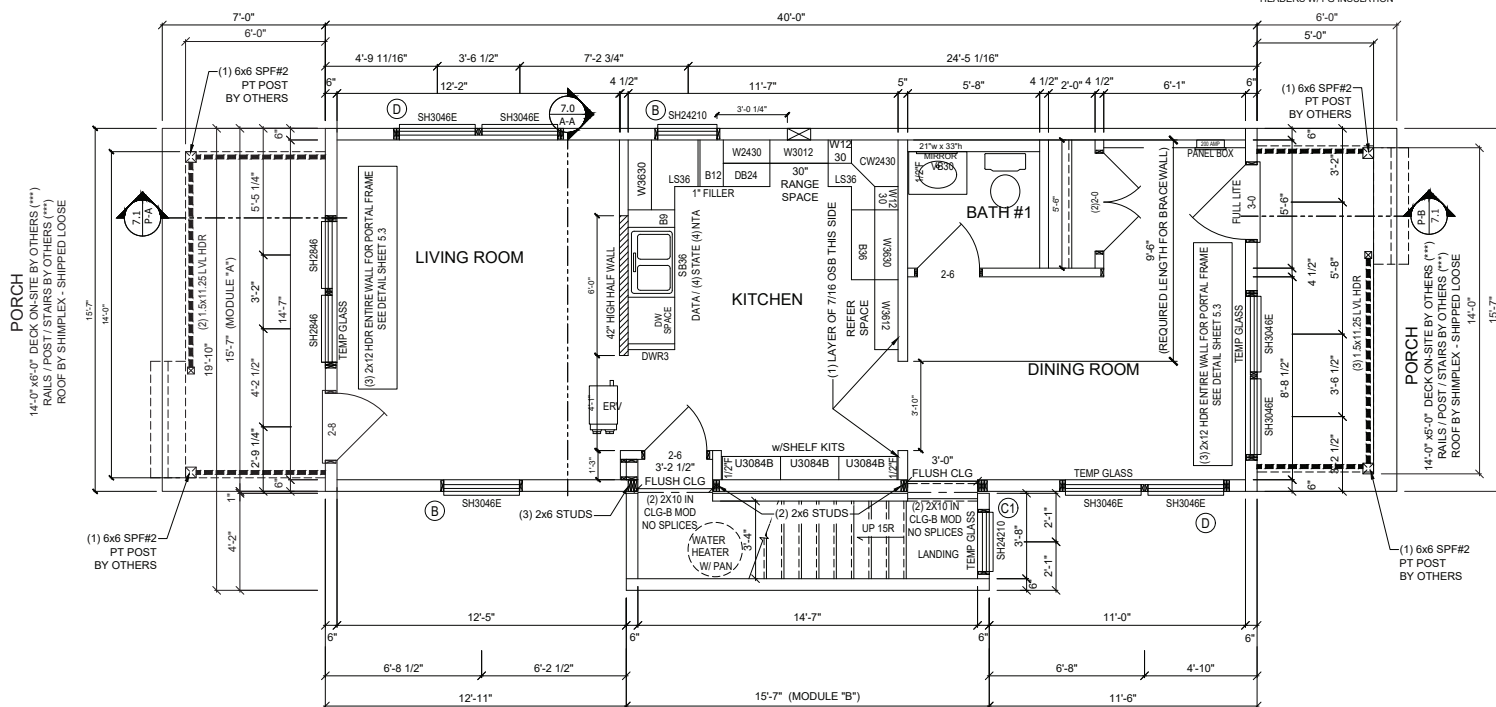
Eng. No.: 23-0704
Eng. Date: 08/08/23
SERIAL No.: 0000
DRAWING BY: SDD
CHECKED BY: JA
DRAWING No.: 2.3

SCALE: 3/16" = 1'-0"

BUILDING ELEVATIONS

8'-0" CEILING HEIGHT

WINDOWS HEADER HEIGHT @ 6'-10 1/4" UNLESS NOTED OTHERWISE
INTERSTATE SGL HUNG WINDOWS - TRIPLE PANE



- (A) = TRIPLE 2x10 (SPF #2) HEADERS W/ RIGID FOAM INSULATION
- (B) = DOUBLE 2x10 (SPF #2) HEADERS W/ FG INSULATION
- (C) (C1) = SINGLE 2x10 (SPF #2) HEADER w/ FG INSULATION
- (D) = DOUBLE 1.5 x 9.25 LVL HEADERS W/ FG INSULATION

Verified by
NTA 3/19/2024
INC.
Derived from NYDOS
approved building system

Simplex Industries
1 Simplex Drive
Scranton, PA 18504
Simplex
Homes
www.simplexhomes.com ~
www.facebook.com/simplexhomes

[illegible][illegible]

REGISTERED ARCHITECT / PE STAMP



Eng. No:	23-0704
Eng. Date:	08/08/23
SERIAL No:	0000
DRAWING BY:	SDD
CHECKED BY:	A
DRAWING No	

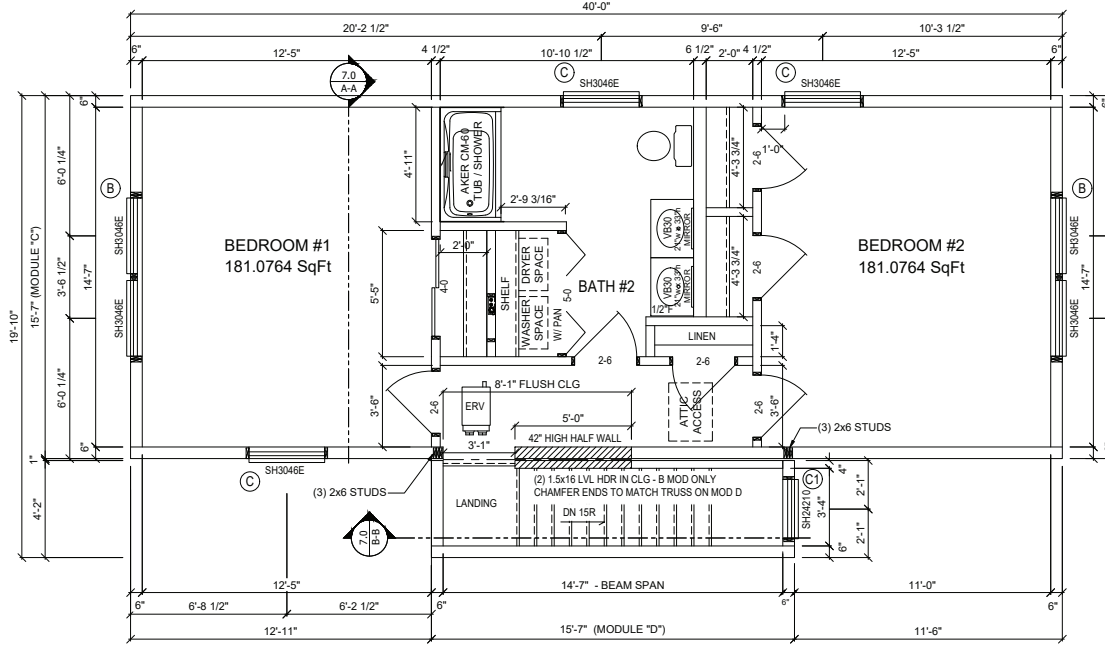
3.0

SCALE:	$3/16" = 1'-0"$
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GENERAL NOTES:

8'-0" CEILING HEIGHT
WINDOWS HEADER HEIGHT @ 6'-10 1/4" UNLESS NOTED OTHERWISE
INTERSTATE SGL HUNG WINDOWS - TRIPLE PANE

- (A) = TRIPLE 2x10 (SPF #2) HEADERS W/ RIGID FOAM INSULATION
- (B) = DOUBLE 2x10 (SPF #2) HEADERS W/ FG INSULATION
- (C) (C1) = SINGLE 2x10 (SPF #2) HEADER W/ FG INSULATION
- (D) = DOUBLE 1.5 x 9.25 LVL HEADERS W/ FG INSULATION



Verified by
NIA INC.
3/19/2024
Derived from NYDOS
approved building system

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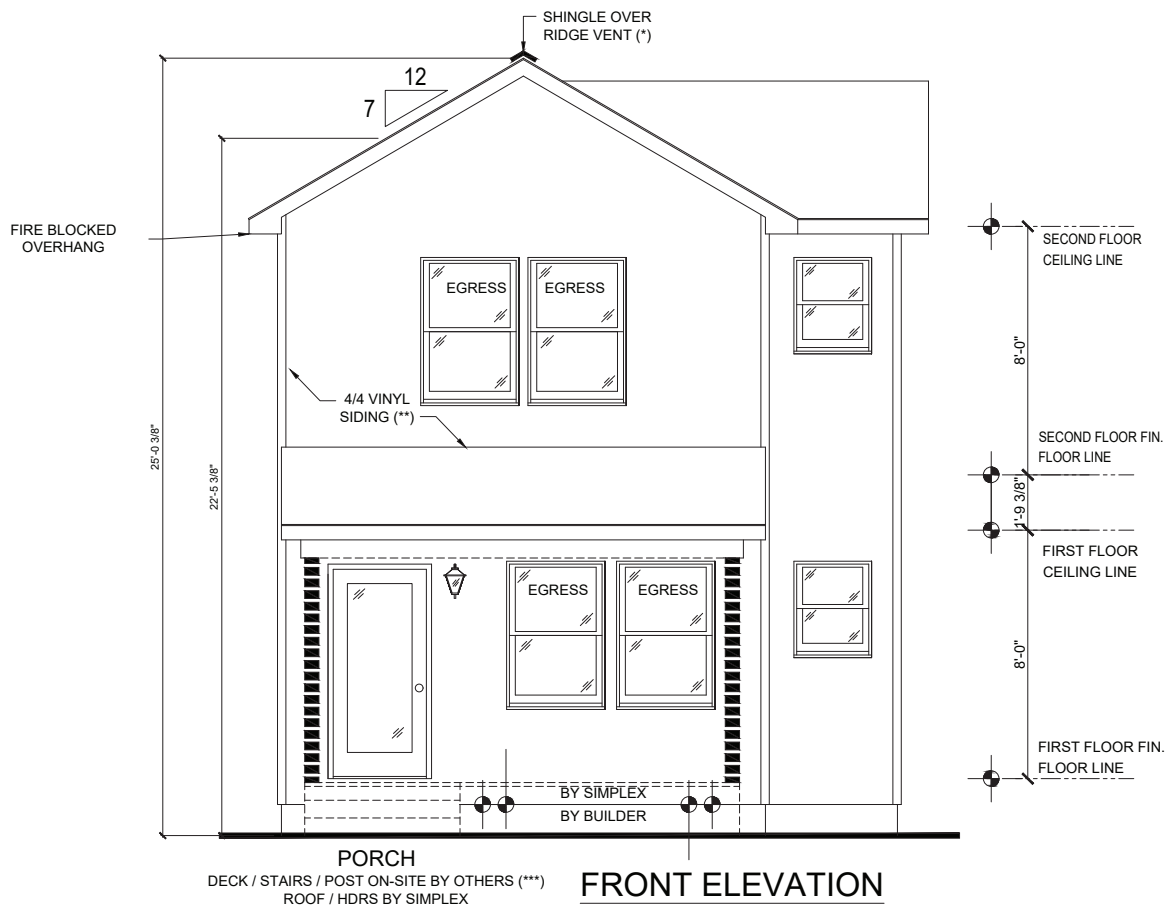
REVISIONS	DATE	DESCRIPTION
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Engineering No.	23-0704
Engineering Date	08/08/23
Serial No.	0000
DRAWING BY	SDD
CHECKED BY	JA
DRAWING No.	

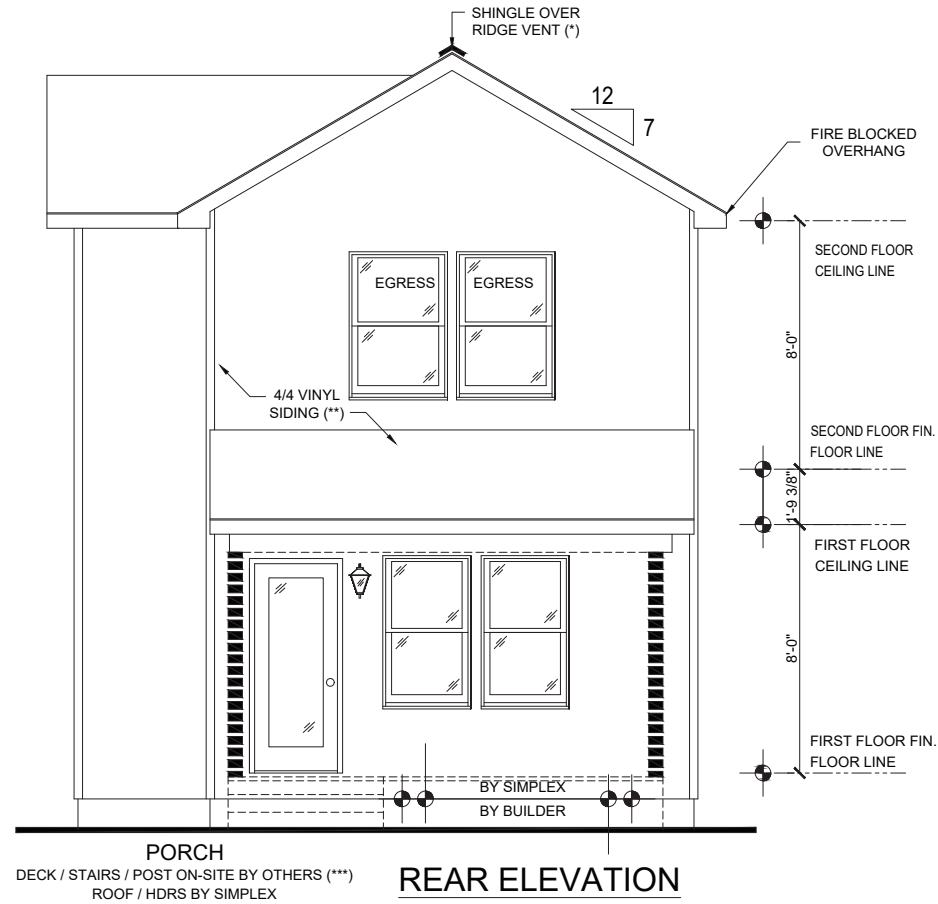
SCALE	3/16" = 1'-0"
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2ND FLOOR PLAN



 Simplex Industries 1 Simplex Drive Scranton, PA 18504 Simplex Homes www.simpleshomes.com www.facebook.com/simpleshomes		THE DRAWING IS THE PROPERTY OF SIMPLEX HOMES AND IT IS TO BE USED ONLY FOR THE PROJECT SPECIFICALLY IDENTIFIED HEREON. IT IS NOT TO BE REPRODUCED OR COPIED IN ANY MANNER WITHOUT THE WRITTEN PERMISSION OF SIMPLEX HOMES. FOR FURNISHING INFORMATION TO OTHERS, OR FOR ANY OTHER PURPOSE, WITHOUT THE WRITTEN PERMISSION OF SIMPLEX HOMES, INTEREST OF SIMPLEX WILL BE RETURNED TO SIMPLEX INDUSTRIES, INC.	
		SHREINAGE MAY OCCUR IN THE FACE WITH SEASONING PROCESS AND MAY EFFECT THE EXTERIOR FINISH MATERIAL MANUFACTURED FOR THIS PRODUCT. INSTALLER SHOULD CONSULT THE MANUFACTURER'S RECOMMENDATIONS FOR ACCOUNT FOR POSSIBLE SHREINAGE.	
CUSTOMER	DATE	DESCRIPTION	APPROVED
SPEC	A	A	A
117 SEARS STREET	A	A	A
ITHACA, NY 14850	A	A	A
BUILDER:	A	A	A
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No.	1	***	APPROVED
REVISIONS			
116 W CLINTON STREET ITHACA, NY 14850 DRAWING TITLE			
BUILDING ELEVATIONS			

REGISTERED ARCHITECT / P.E. STAMP	
	
Eng. No.	23-0705
Eng. Date:	08/08/23
Serial No.	0000
DRAWING BY:	SDD
CHECKED BY:	JA
DRAWING No.	
2.0	
SCALE:	1/4" = 1'-0"





Simplex Industries
1 Simplex Drive
Scranton, PA 18504
www.simplexhomes.com
www.facebook.com/simplexhomes

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No.	DESCRIPTION
1	DATE
2	DATE
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CUSTOMER: 117 SEARS STREET
ITHACA, NY 14850

117 SEARS STREET
ITHACA, NY 14850

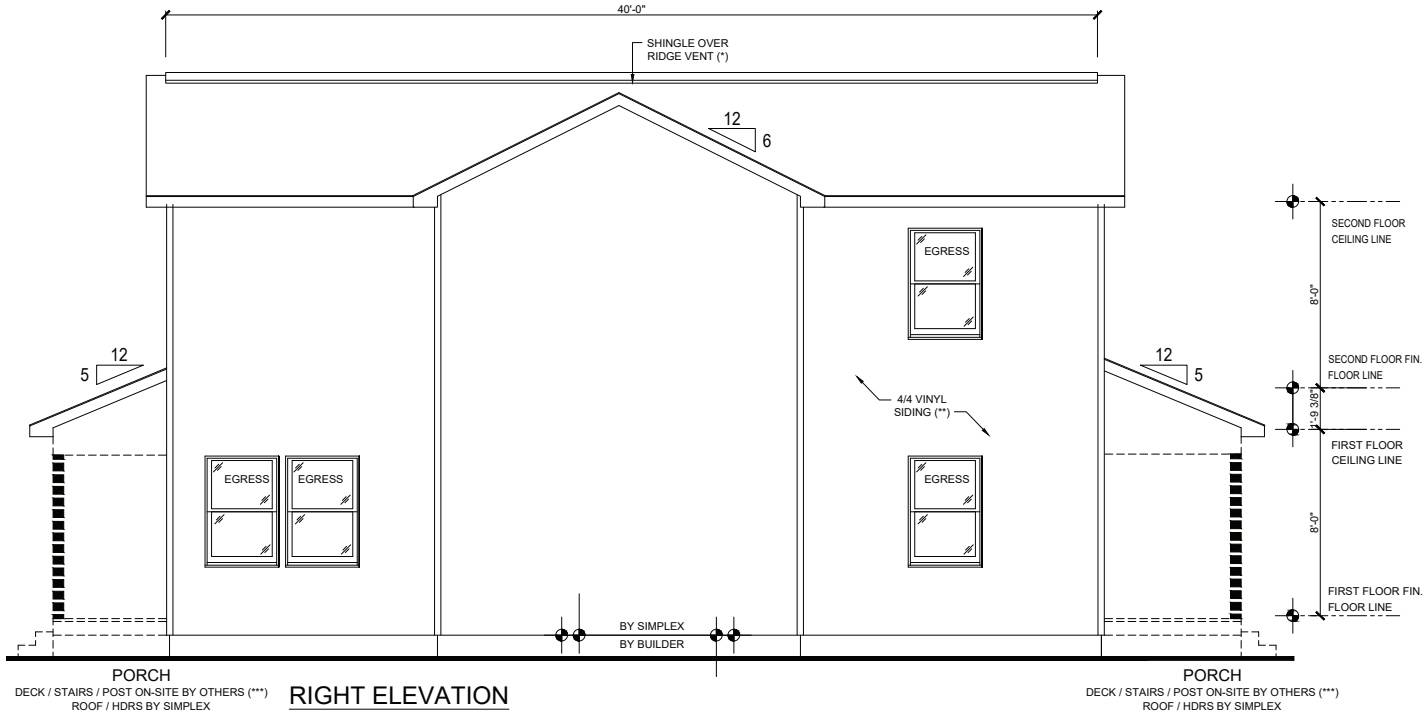
DRAWING TITLE: BUILDING ELEVATIONS

REGISTERED ARCHITECT / PE STAMP



Eng. No.: 23-0705
Eng. Date: 08/08/23
SERIAL No.: 0000
DRAWING BY: SDD
CHECKED BY: A
DRAWING No.: 2.1

SCALE: 1/4" = 1'-0"



Verified by
NIA INC.
3/14/2024
Derived from NYDOS
approved building system

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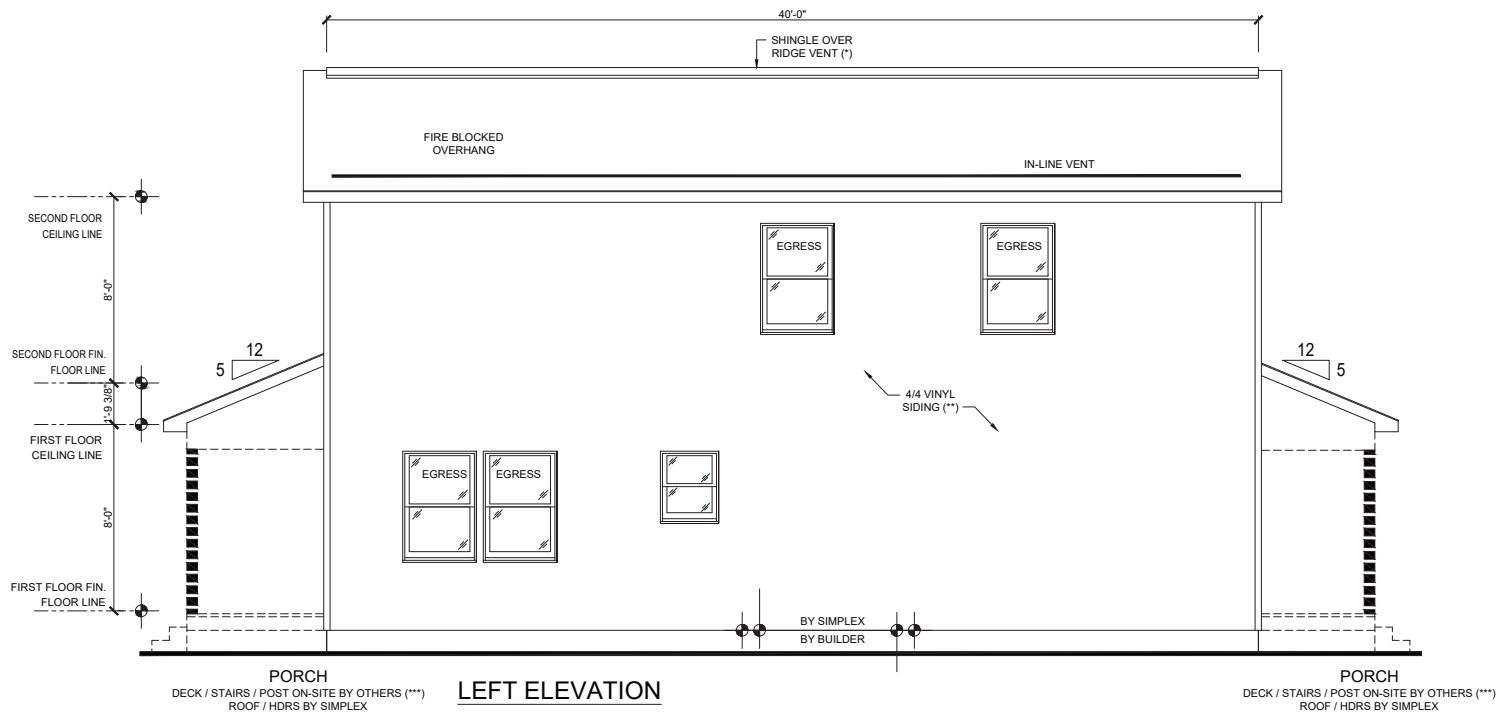
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CUSTOMER	117 SEARS STREET ITHACA, NY 14850
PROJECT	115 W CLINTON STREET ITHACA, NY 14850
DRAWING TITLE	BUILDING ELEVATIONS



Eng. No.	23-0705
Eng. Date	08/08/23
SERIAL No.	0000
DRAWING BY	SDD
CHECKED BY	A
DRAWING No.	

SCALE	2.2



CUSTOMER SPEC 117 SEARS STREET ITHACA, NY 14850 DRAWING TITLE BUILDING ELEVATIONS 115 W CLINTON STREET ITHACA, NY 14850	6.	A	A	THIS DRAWING IS THE PROPERTY OF SIMPLEX AND IS UNREPRODUCIBLE WITHOUT ITS WRITTEN PERMISSION. IT IS TO BE USED AS A WHOLE OR IN PART, OR FOR ANY OTHER PURPOSES DETRIMENTAL TO THE INTERESTS OF SIMPLEX INDUSTRIES, LIMITED. IT IS NOT TO BE LOANED, REPRODUCED, COPIED, OR IN ANY MANNER BECOMING THE PROPERTY OF ANY OTHER PARTY. DUE TO VARIATIONS IN THE SEASONING PROCESS AND MAY EFFECT THE FINISH, THE CONTRACTOR SHALL CONSULT THE RECOMMENDED INSTALLATION INSTRUCTIONS TO ACCOMMODATE POSSIBLE WOOD SHRINKAGE.
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REVISIONS				



Eng. No:	23-0705
Eng. Date:	08/08/23
SERIAL No:	0000
DRAWING BY:	SDD
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DRAWING No	

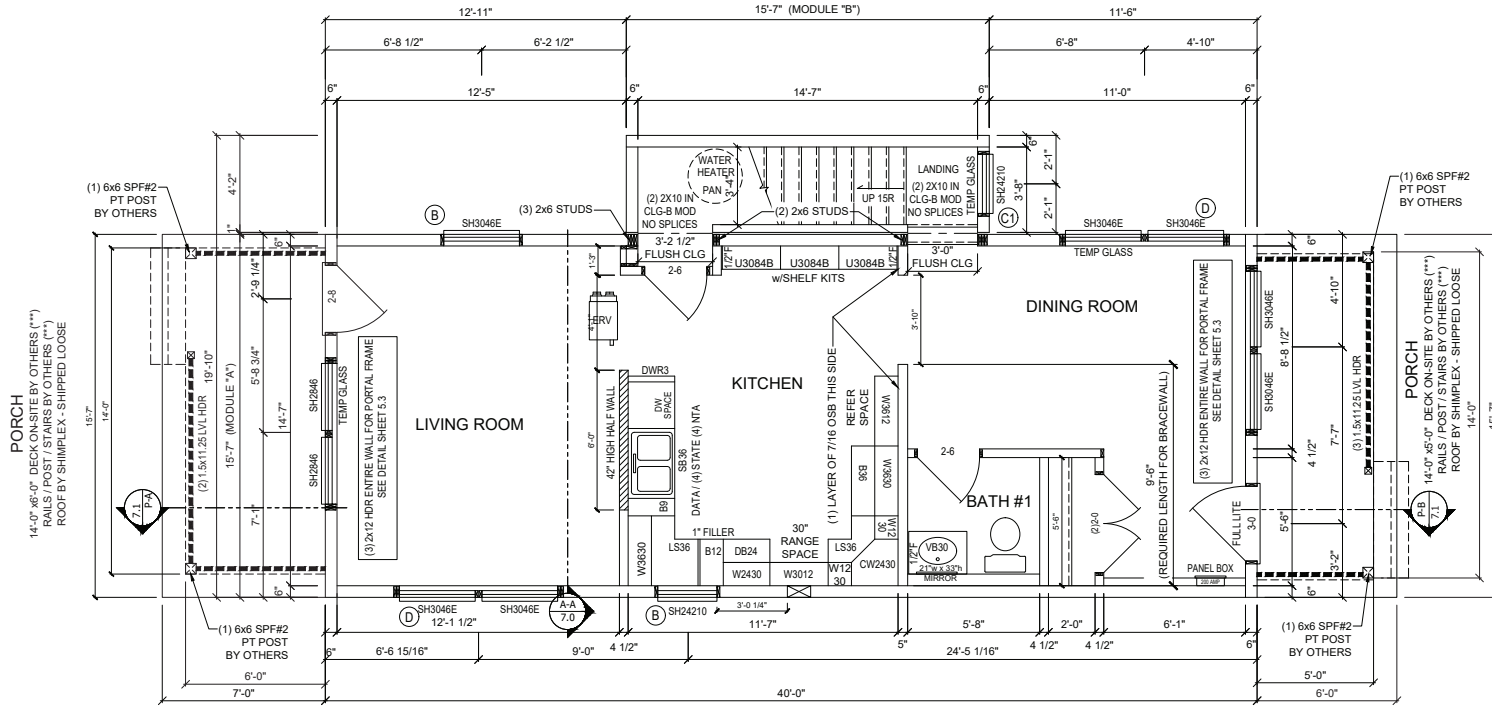
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SCALE:	$3/16" = 1'-0"$
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GENERAL NOTES:

8'-0" CEILING HEIGHT

WINDOWS HEADER HEIGHT @ 6'-10 1/4" UNLESS NOTED OTHERWISE
INTERSTATE SGL HUNG WINDOWS - TRIPLE PANE



- (D) = DOUBLE 1.5 x 9.25 LVL HEADERS W/ FG INSULATION
- (C) = SINGLE 2x10 (SPF #2) HEADER w/ FG INSULATION
- (B) = DOUBLE 2x10 (SPF #2) HEADERS W/ FG INSULATION
- (A) = TRIPLE 2x10 (SPF #2) HEADERS W/ RIGID FOAM INSULATION

Verified by
NIA INC.
Derived from NYDOS
approved building system

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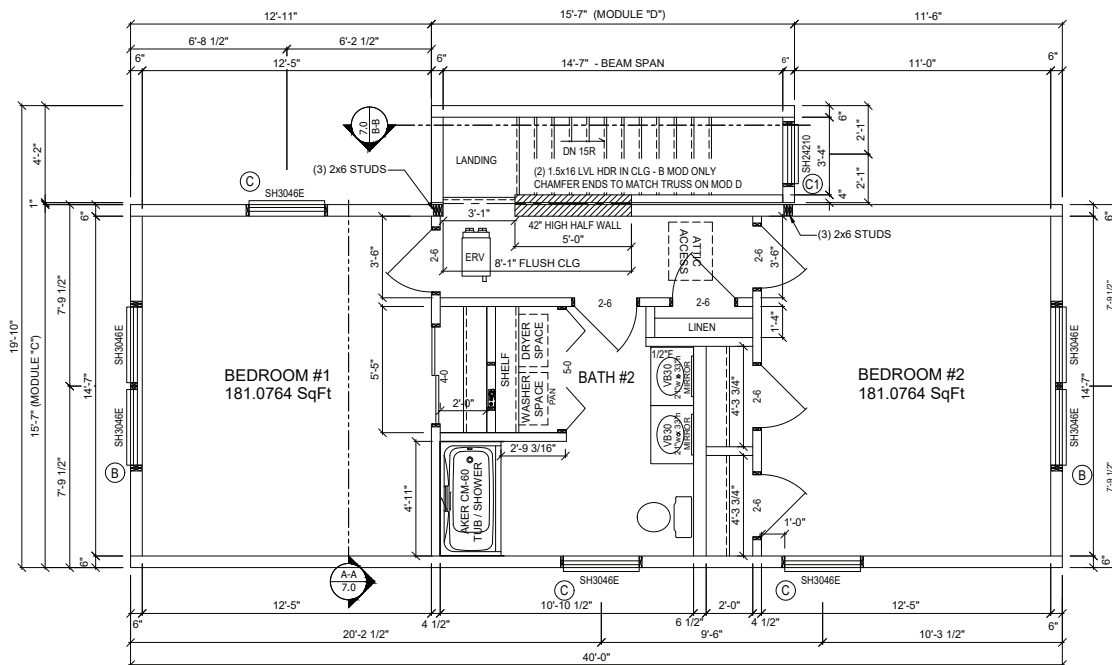
Eng. No.: 23-0705
Eng. Date: 08/08/23
SERIAL No.: 0000
DRAWING BY: SDD
CHECKED BY: A
DRAWING No.: 3.0

SCALE: 3/16" = 1'-0"

1st. FLOOR PLAN

8'-0" CEILING HEIGHT

WINDOWS HEADER HEIGHT @ 6'-10 1/4" UNLESS NOTED OTHERWISE
INTERSTATE SGL HUNG WINDOWS - TRIPLE PANE



- (D) = DOUBLE 1.5 x 9.25 LVL
HEADERS W/ FG INSULATION
- (C) (C1) = SINGLE 2x10 (SPF #2) HEADER
w/ FG INSULATION
- (B) = DOUBLE 2x10 (SPF #2) HEADERS
W/ FG INSULATION
- (A) = TRIPLE 2x10 (SPF #2)
HEADERS W/ RIGID FOAM
INSULATION

Verified by
NIA 3/14/2024
 INC.
 Derived from NYDOS
 approved building system



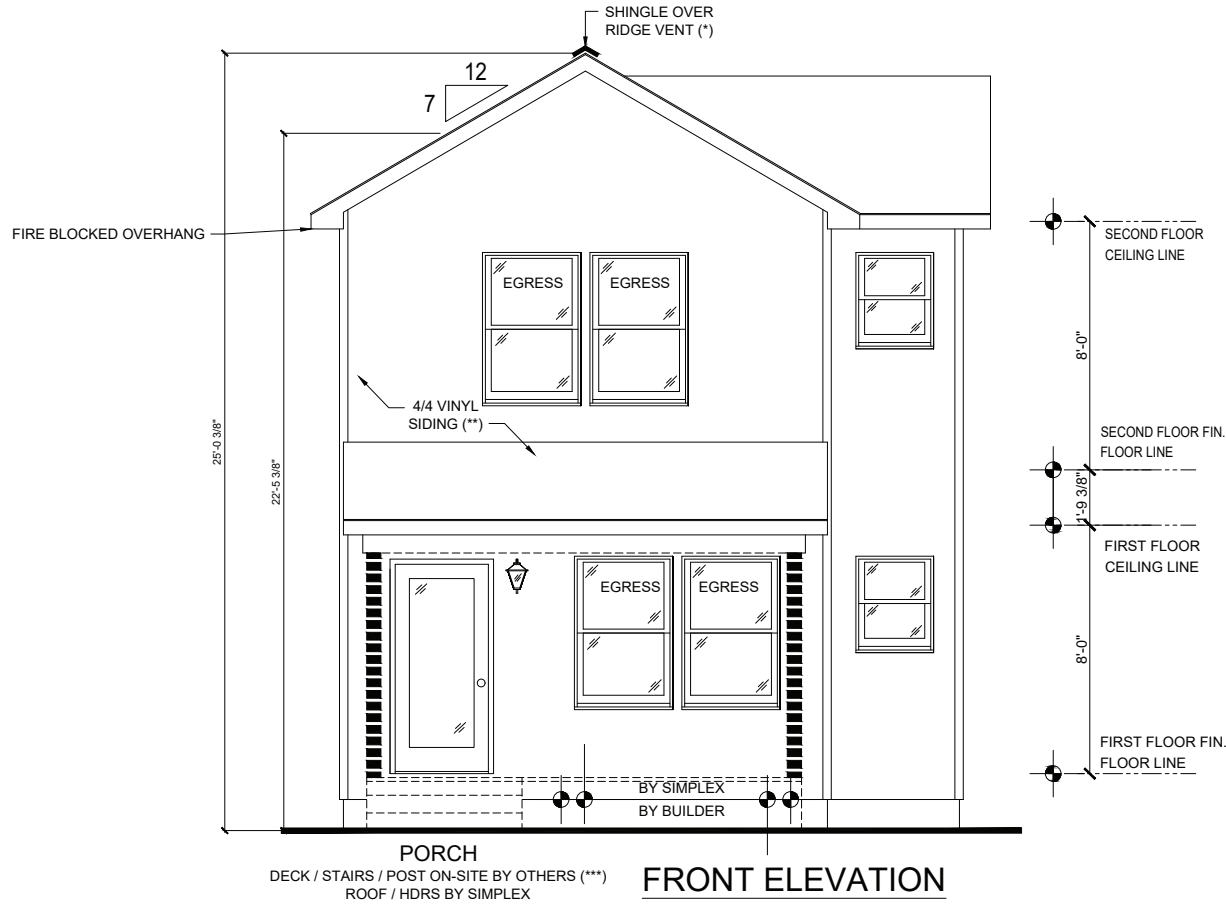
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CUSTOMER'S		DATE		REVISIONS	
NO.	DESCRIPTION	DATE	NO.	DATE	NO.
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2ND FLOOR PLAN



Eng. No:	23-0705
Eng. Date:	08/08/23
SERIAL No:	0000
DRAWING BY:	SDD
CHECKED BY:	A
DRAWING No.	
3.1	
SCALE:	3/16" = 1'-0"



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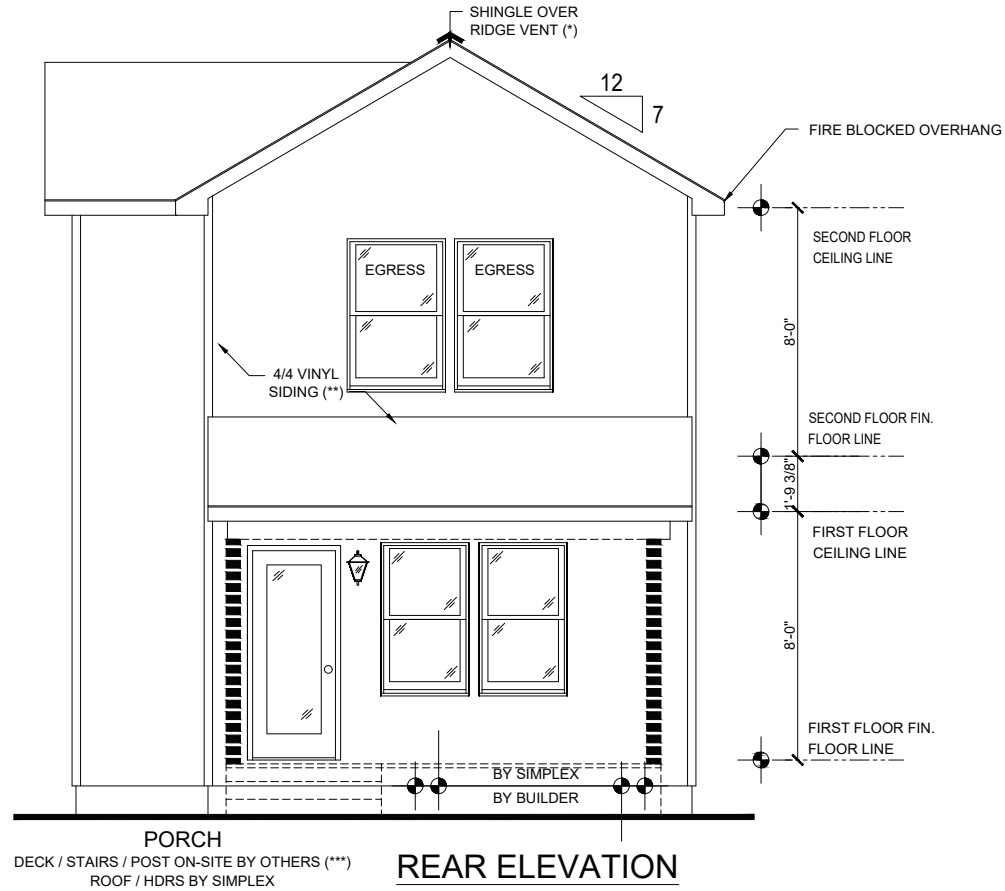
REVISIONS	
NO.	DATE
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CUSTOMER	119 SEARS STREET ITHACA, NY 14850
PROJECT	119 W. CLINTON STREET ITHACA, NY 14850
DRAWING TITLE	BUILDING ELEVATIONS



Eng. No.	23-0706
Eng. Date	10/19/23
SERIAL No.	0000
DRAWING BY	JCM
CHECKED BY	A
DRAWING No.	

SCALE	2.0
	1/4" = 1'-0"



REAR ELEVATION



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NO.	DATE	DESCRIPTION
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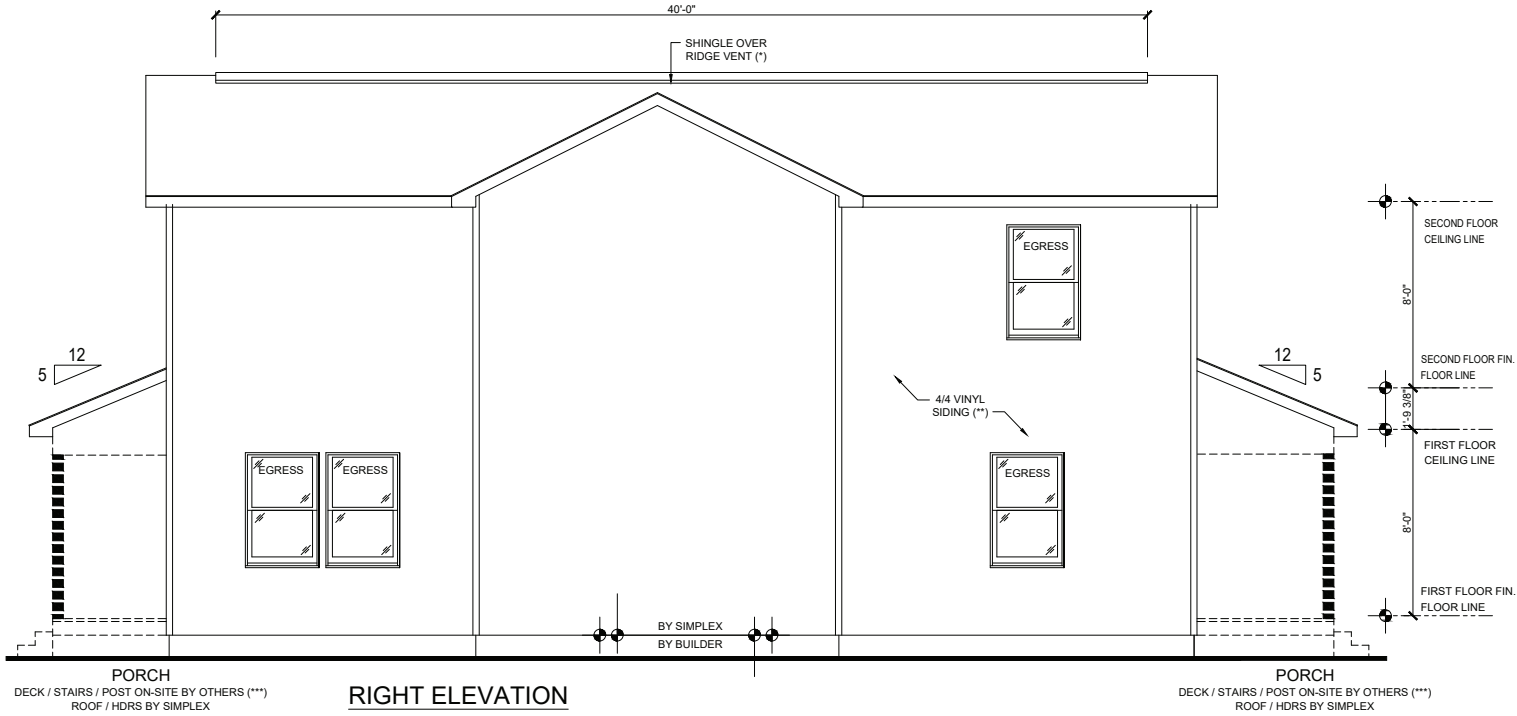
REGISTERED ARCHITECT / PE STAMP



Eng. No.	23-0706
Eng. Date	10/19/23
Serial No.	0000
DRAWING BY	JCM
CHECKED BY	JA
DRAWING No.	

SCALE	1/4" = 1'-0"
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BUILDING ELEVATIONS



RIGHT ELEVATION



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REVISIONS		BUILDING ELEVATIONS	
NO.	DATE	DESCRIPTION	APPROVED
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CUSTOMER	119 SEARS STREET ITHACA, NY 14850
PROJECT	119 W CLINTON STREET ITHACA, NY 14850
DRAWING TITLE	BUILDING ELEVATIONS



Eng. No.	23-0706
Eng. Date	10/19/23
SERIAL No.	0000
DRAWING BY	JCM
CHECKED BY	JA
DRAWING No.	2.2
SCALE	----




 Simplex Industries
 1 Simplex Drive
 Scranton, PA 18504
Simplex
Homes
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WOOD SHRINKAGE MAY OCCUR IN THE FACE WIDTH OF THE LUMBER DUE TO NATURAL LUMBER SEASONING PROCESS AND MAY EFFECT THE EXTERIOR FINISH APPLICATION. REFER TO EXTERIOR FINISH MATERIAL MANUFACTURER FOR RECOMMENDED INSTALLATION INSTRUCTIONS TO ACCOUNT FOR POSSIBLE WOOD SHRINKAGE.

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BUILDING ELEVATIONS



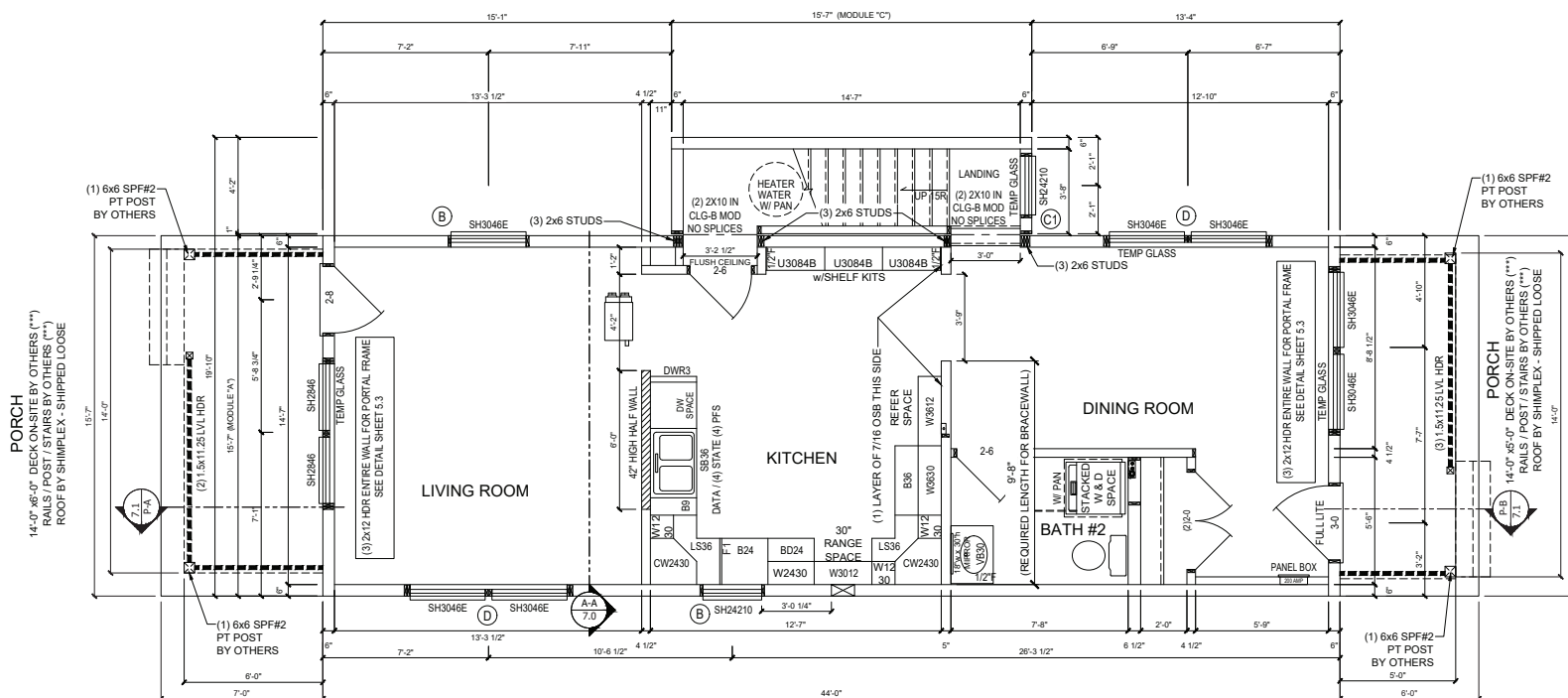
Eng. No:	23-0706
Eng. Date:	10/19/23
SERIAL No:	0000
DRAWING BY:	JCM
CHECKED BY:	A
DRAWING No.	

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SCALE:	$3/16" = 1'-0"$
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GENERAL NOTES:

8'-0" CEILING HEIGHT
WINDOWS HEADER HEIGHT @ 6'-10 1/4" UNLESS NOTED OTHERWISE
INTERSTATE SGL HUNG WINDOWS - TRIPLE PANE



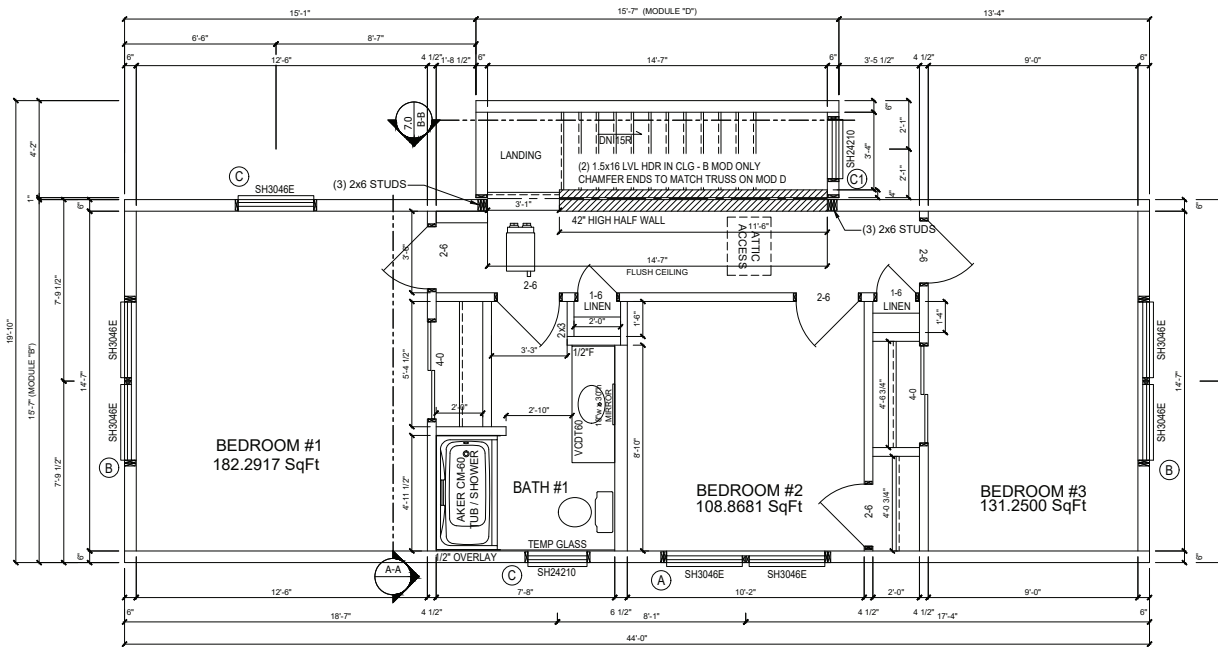
- (D) = DOUBLE 1.5 x 9.25 LVL
HEADERS W/ FG INSULATION
- (C) (C1) = SINGLE 2x10 (SPF #2) HEADER
w/ FG INSULATION
- (B) = DOUBLE 2x10 (SPF #2) HEADERS
W/ FG INSULATION
- (A) = TRIPLE 2x10 (SPF #2)
HEADERS W/ RIGID FOAM
INSULATION

[illegible]

GENERAL NOTES:

8'-0" CEILING HEIGHT

WINDOWS HEADER HEIGHT @ 6'-10 1/4" UNLESS NOTED OTHERWISE
INTERSTATE SGL HUNG WINDOWS - TRIPLE PANE



- (D) = DOUBLE 1.5 x 9.25 LVL HEADERS W/ FG INSULATION
- (C) = SINGLE 2x10 (SPF #2) HEADER W/ FG INSULATION
- (B) = DOUBLE 2x10 (SPF #2) HEADERS W/ FG INSULATION
- (A) = TRIPLE 2x10 (SPF #2) HEADERS W/ RIGID FOAM INSULATION



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REGISTERED ARCHITECT / PE STAMP



Eng. No.	23-0706
Eng. Date	10/19/23
Serial No.	0000
DRAWING BY	JCM
CHECKED BY	JA
DRAWING No.	

SCALE	3/16" = 1'-0"
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2ND FLOOR PLAN



CITY OF ITHACA

108 E. Green Street — 3rd Floor Ithaca, NY 14850-5690

DEPARTMENT OF PLANNING, BUILDING, ZONING, & ECONOMIC DEVELOPMENT

Division of Zoning

Megan Wilson, Secretary to the Board of Zoning Appeals

Telephone: 607-274-6550

Fax: 607-274-6558

E-Mail: mwilson@cityofithaca.org

CITY OF ITHACA BOARD of ZONING APPEALS Area Variance Findings & Decision

Appeal No.: 3264

Applicant: Leslie Ackerman, on behalf of property owner Ithaca Neighborhood Housing Services

Property Location: 117-119 Sears Street

Zoning District: R-2b

Applicable Section of City Zoning Code: §325-8, Columns 6, 11 and 14/15

Requirement for Which Variance is Requested: Lot Area, Front Yard and Rear Yard

Publication Dates: February 1, 2024 and February 6, 2024.

Meeting Held On: February 6, 2024.

Summary: Appeal of Leslie Ackerman, on behalf of property owner Ithaca Neighborhood Housing Services (INHS), for an area variance from Section 325-8, Column 6, Lot Area, Column 11, Front Yard, and Column 14/15, Rear Yard, requirements of the Zoning Ordinance. The applicant proposes to subdivide the existing lot at 117-119 Sears Street into four individual lots and construct four for-sale, single-family homes. The housing is modular construction consisting of two 3-bedroom (1305 SF each) and two 2-bedroom (1190 SF each) homes on four different lots.

The Zoning Ordinance requires each lot in the R-2b district to be a minimum of 3,000 SF for a single-family home. The proposed lots with 3-bedroom units (113 & 119 Sears Street) will have lot areas of 2,669 SF or 89% of the minimum required lot area. The proposed lots with 2-bedroom units (115 & 117 Sears Street) will have lot areas of 2,533 SF and 2,550 SF or 83-84% of the required minimum lot area.

The Zoning Ordinance also requires a minimum front yard of 10' and a minimum rear yard of 20' for the proposed lots. The applicant is proposing a 4' front yard for all properties or 40% of the required front yard. Additionally, the applicant is proposing an 8' 10" rear yard for 113 and 119 Sears Street (44% of the required rear yard). A rear yard of 12' 10" (or 64% of the required rear yard) is proposed for both 115 & 117 Sears Street.

Public Hearing Held On: February 6, 2024.

Members present:

Donna Fleming

Andre Gardiner

Marshall McCormick

David Barken, Chair

There were no comments in support of the requested variance.

George Maltezos, 428 N. Tioga Street, submitted a written comment in opposition to the appeal.

Tompkins County Review per Section 239 -l & -m of New York State General Municipal Law:

The Tompkins County Department of Planning & Sustainability reviewed the application for area variances and found that the requested variances will have no significant county-side or inter-community impacts.

Environmental Review: This variance is a component of an action that also includes subdivision and site plan review. Considered together, this is a Type 1 Action under the City of Ithaca Environmental Quality Review Ordinance and the State Environmental Quality Review Act for which the Planning and Development Board, acting as Lead Agency, made a Negative Determination of Environmental Significance on January 26, 2024.

Planning & Development Board Recommendation: The Planning Board finds no long-term negative impacts to planning and fully supports these variances. The Board notes this development is an improvement to existing conditions and supports affordable home ownership in the downtown area. The Board also notes the four buildings with the requested variances fit into the character of the street and the neighborhood.

Ithaca Landmarks Preservation Commission Recommendation:

Not applicable

Motion: A motion to grant variance #3264 117-119 Sears Street was made by D. Barken.

Deliberations & Findings:

The Board acknowledged that many of the homes on Sears Street are not compliant with the existing zoning setbacks and found that the proposed setbacks, particularly front yard, are more compatible with the neighborhood. The Board debated whether there was a feasible alternative to the proposed project that would be zoning-compliant with lot area requirements and still meet the applicant's goals of providing multiple affordable units on the site. Members noted that it would be impossible to find a viable alternative project that would be fully zoning-compliant.

Factors Considered:

1. Whether an undesirable change would be produced in the character of the neighborhood or a detriment to nearby properties: Yes ☐ No ☒

The requested area variances will not produce an undesirable change in the character of the neighborhood as the proposal is consistent with community plans. The proposed lot sizes and yard setbacks are consistent with the current built environment and will be compatible with conditions of the neighborhood.

2. Whether the benefit sought by the applicant can be achieved by a feasible alternative to the variance: Yes ☒ No ☐

The applicant could have pursued a project that is in greater compliance with the Zoning Ordinance, and the applicant has not demonstrated that such a project is not feasible. However, the Board notes that the variances requests will not have a negative impact on the neighborhood and will address the County's goals for the property as well as neighborhood concerns about the site.

3. Whether the requested variance is substantial: ☒ Yes ☐ No

The Board finds that the requested variances are substantial. However, the Board finds that, while proportionally substantial, the requested variances will not have significant impacts on the neighborhood or nearby properties. Additionally, the proposed site has a unique relationship to County-owned land that reduces the need for a larger rear yard.

4. Would the variance have an adverse impact on the physical or environmental conditions in the neighborhood: Yes ☐ No ☒

The Planning and Development Board, acting as lead agency, has determined that the proposed project will not have an adverse impact on the environment. Based on the submitted application materials, testimony of the applicant, and observations of existing conditions, the Board does/does not find any evidence of adverse physical or environmental conditions.

5. Whether the alleged difficulty was self-created: Yes ☒ No ☐

The alleged difficulty is self-created as the applicant has designed new subdivided parcels and new construction that do not meet the requirements of the Zoning Ordinance. However, the Board finds that the project's benefits to the property owner and the broader community outweigh the fact that the difficulty is self-created.

Second Motion to Grant Variance: Made by D. Fleming.

Vote: 3-1-0

Andre Gardiner	NO
Donna Fleming	YES
Marshall McCormick	YES
David Barken, Chair	YES

Determination of the BZA Based on the Above Factors:

The BZA, taking into the five factors for an area variance, finds that the benefit to the applicants outweighs the detriment to the neighborhood or community. The BZA further finds that the variances from the Zoning Ordinance, §325-8, Columns 6, 11, and 14/15 are the minimum variances that should be granted in order to preserve and protect the character of the neighborhood and the health, safety, and welfare of the community.



Megan Wilson, Zoning Administrator
Secretary, Board of Zoning Appeals

February 12, 2024

Date

